

Chapter 41 Streets And Roads[Subchapter 41A - Harris County Road Law](#)[Subchapter 41B - Rules For The Construction Of Facilities Within Harris County And Flood Control](#)[District Rights-Of-Way](#)[Subchapter 41C - Regulations For The Construction Off Driveways And/Or Culverts On County](#)[Easements And Rights-Of-Way](#)[Subchapter 41F - Toll Road Sign Regulations](#)[Subchapter 41J - Traffic Fatality Markers](#)**Subchapter 41A - Harris County Road Law**[Explanatory Note](#)[Sec 1 General Purpose](#)[Sec 1-A Discharge Into Drainage Ditches](#)[Section 1-B Fatality Markers](#)[Sec 2 Regulations By Commissioners Court](#)[Sec 3 Regulations Recorded In Minutes Of Commissioners Court](#)[Sec 4 Office Of Ex-Officio Road Commissioner Abolished](#)[Sec 5 County Commissioner To Be Ex-Officio Precinct Road Supervisor](#)[Section 5-A Repealed](#)[Sec 6 Additional Bond By Precinct Road Supervisor](#)[Sec 7 Meetings Of Commissioners Court](#)[Section 7a Grants Of Easements By Commissioners Court](#)[Sec 8 Failure To Perform Duties Of A County Commissioner](#)[Sec 9 Purchases](#)[Sec 10 Final Accounting](#)[Sec 11 Repealed](#)[Sec 12 Repealed](#)[Sec 13 Taking Of Material For Road](#)[Sec 14 Cleaning Ditches, Suit To Recover Costs](#)[Sec 15 Petition For Proposed Road](#)[Sec 16 Control Of County Roads](#)[Sec 16-A In Areas Annexed By Municipalities](#)[Sec 17 Clerk Of Commissioners Court](#)[Sec 18 Auditor's Monthly Report](#)[Sec 19 Foremen, Superintendents And Other Employees](#)[Sec 20 Reports: Tools And Supplies](#)[Sec 21 Road, Ditch Or Drain Crossing Railways](#)[Sec 22 Maximum Road Width](#)[Sec 23 Weight Limits](#)[Sec 24 County Engineer](#)[Sec 25 Repealed](#)[Sec 26 Repealed](#)[Sec 27 Repealed](#)[Sec 28 Road Bonds; Auditor's Countersignature](#)[Sec 28-A Duties Of County Auditor](#)[Sec 28-B Repealed](#)[Sec 29 Definition Of Road](#)[Sec 30 Investment Of Sinking Funds](#)[Sec 30-A Use Of Sinking Funds](#)[Sec 31 Trains On Public Crossings](#)[Sec 31-A Competitive Bidding](#)[Sec 31-B Tunnels Under Bodies Of Water](#)[Sec 31-C Road Log, Right Of Way, Subdivision Plats](#)

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Explanatory Note

The Harris County Road Law was originally passed in 1913 as a Special Law by the Texas Legislature pursuant to [Texas Constitution Article VIII, Section 9](#). This constitutional provision authorizes the Legislature to pass local laws for the maintenance of the public roads and highways without the local notice required for special or local laws.

The validity of the Harris County Road Law was recognized by the Court of Civil Appeals in [Hughes v. County Commissioners' Court of Harris County, 35 S.W.2d 818 \(Tex.Civ.App.—Houston \[1st Dist\] 1931, no writ\)](#).

In making this compilation, the original law and amendments have been set out verbatim as found in the session laws, although some inconsistency in the matter of capitalization and some typographical errors in the original bills as passed are evident.

Sec 1 General Purpose

That, subject to the provisions of this Act, the Commissioners Court of Harris County shall have control of all roads, bridges, drains, ditches, culverts and all works and constructions incident to its roads, bridges, and drainage, that have been heretofore laid out or constructed, or that may hereafter be laid out or constructed by Harris County, or under its direction.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64\)](#)

Sec 1-A Discharge Into Drainage Ditches

The Commissioners Court of Harris County may prohibit the discharge of sewage and municipal, recreational, agricultural, or industrial waste into drainage ditches in the right-of-way of county roads when such waste is not being discharged in accordance with a permit issued by the Texas Natural Resource Conservation Commission. The court may adopt rules to administer this section.

[\(Act of May 29, 1983, 68th Leg., ch. 801, 1983 Tex. Gen. Laws 464; Act of May 26, 1999, 76th Leg., ch. 923, § 1, 1999 Tex. Gen. Laws 3645\)](#)

Section 1-B Fatality Markers

To mark the location of a traffic accident that resulted in a fatality, the Commissioners Court of Harris County may design and place a marker or other sign in the right-of-way of:

(1) a county road in the county; or

(2) a state, city, or other public road in the county if the Commissioners Court has the written permission of the state agency, city, or other governmental entity that has primary responsibility for maintaining the road.

[\(Act of May 26, 1985, 69th Leg., HB 2412\)](#)

Sec 2 Regulations By Commissioners Court

(a) Subject to the provisions of this Act, the Commissioners Court of Harris County shall have the power and right to adopt such rules and regulations for:

- (1) the proper construction and maintenance of its roads, bridges and drainage as it may see proper;
- (2) the construction and maintenance of driveways, culverts, bridges, and other structures within the county road right-of-way to provide access to and from the traveled portion of the road to property adjoining such road which may include the following:
 - a. to require any individual or entity to give notice to Harris County prior to the placement, removal, or relocation of driveways, culverts, bridges, and other structures within the county road right-of-way; or
 - b. to set requirements for the size, type and location of such driveways, culverts, bridges and other structures within the county road right-of-way;
- (3) the laying, constructing, maintaining and repairing of pipelines, lines, mains, cables, or other public utility facilities in, under, along, across, or over the county road right-of-way by any individual or entity authorized to do so by law, which may include the following:
 - a. to require notice to Harris County prior to the laying, constructing, maintaining, or repair of said pipelines, mains, cables, or other public utility facilities within the county road right-of-way; or
 - b. to set minimum requirements and conditions for such laying, constructing, maintaining and repairing of such pipelines, lines, mains, cables, or other public utility facilities in, under, across, and/or along such county road right-of-way;
- (4) the drainage of land into a road, road right-of-way, or appurtenant drainage facility;

the collection of reasonable fees set by the Commissioners Court from any person or entity required by such rules and regulations to give notice to Harris County.

(b) Fees collected under Subsection (a) (b) of this section may be used only to defray the expense of administration of such rules and regulations promulgated by the Commissioners Court.

(c) The Commissioners Court shall further have the power from to add to, alter, repeal, or amend said rules and regulations.

(d) Any person who shall violate any provisions of any rules or regulations adopted by Commissioners Court pursuant to this section shall be guilty of a Class C misdemeanor.

(e) A county may institute a civil suit in district court against a person who violates a rule or regulation adopted by the Commissioners Court under this section. On a finding that the person has violated, is violating, or is threatening to violate the rule or regulation, the Court may:

- (1) grant injunctive relief to restrain the person from engaging in or continuing the violation;
- (2) impose a civil penalty payable to the county of not more than \$200; or
- (3) grant the injunctive relief and impose the civil penalty.

(f) When such rules and regulations are adopted, amended, or repealed, there shall be present at least three Commissioners and the County Judge. If two of the Commissioners are absent from regular weekly meeting of the Commissioners Court for as long as two days in succession, then upon the third day the Commissioners Court may, two Commissioners and the County Judge being present, act on any matter covered by this section as if three members and the County Judge were present.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64; Act of May 29, 1983, 68th Leg., ch. 801, 1983 Tex. Gen. Laws 4643; Act of May 26, 1999, 76 Leg., ch. 923, § 2, 1999 Tex. Gen. Laws 3645\)](#)

Sec 3 Regulations Recorded In Minutes Of Commissioners Court

Whenever any rules, regulations or course of procedure in connection with the construction or maintenance of the roads, bridges, and drains of Harris County have been adopted, they shall thereupon be reduced to writing, approved by the County Judge and recorded by the clerk in the minutes of the Commissioners Court, and shall thereafter be binding.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64; Act of May 26, 1999, 76th Leg., ch. 923, § 3, 1999 Tex. Gen. Laws 3645\)](#)

Sec 4 Office Of Ex-Officio Road Commissioner Abolished

It is hereby specially provided that the office of ex-officio Road Commissioner as now provided by law is hereby abolished in the County of Harris, and from and after the final passage of this Act the several Commissioners of Harris County shall cease to act as ex-officio Road Commissioners, and their bonds as such shall be null and void; except for their official acts prior to the date of final passage of this Act.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64\)](#)

Sec 5 County Commissioner To Be Ex-Officio Precinct Road Supervisor

From and after the passage of this Act, each county Commissioner shall be ex-officio a precinct road supervisor, and subject to the provisions of this Act, and under the orders and supervision of the Court, shall have charge of all teams, tools, equipment and property of all kinds committed to his care by the Court for work in his precinct, and shall superintend the laying out of all work of all kinds in his precinct, subject to such control as the Court may see fit to provide.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64\)](#)

Section 5-A Repealed

[Act of May 26, 1999, 76th Leg., ch. 923, § 5, 1999 Tex. Gen. Laws 3645](#)

Sec 6 Additional Bond By Precinct Road Supervisor

Before entering upon the duties of his office, each precinct Road Supervisor shall enter into a bond, in addition to his bond as County Commissioner, in the sum of Three Thousand Dollars (\$3,000), payable to the County Judge and his successors in office for the use and benefit of the Road and Bridge Fund, with two (2) or more good and sufficient sureties, who shall be either owners of unencumbered [sic] real estate in Harris County of the value of at least the full amount of the bond, or be a surety company having an agent in Harris County authorized by law to execute surety bonds, and having a capital stock of at least One Hundred Thousand Dollars (\$100,000), or more, the bond to be conditioned that such County Commissioner in discharging his duties as precinct Road Supervisor will well and truly perform

the duties required of him by law, or by the Commissioners Court, and that he will account for all County property of every kind that may come into his possession or control in the course of the discharge of his duties as such officer.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#); [Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Gen. Laws 358](#))

Sec 7 Meetings Of Commissioners Court

Meetings of the Commissioners Court of Harris County must be in compliance with the requirements of all laws governing the convening of the Commissioners Court, including the open meetings law, [Chapter 551, Government Code](#).

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#)); [Act of April 11, 1995, 74th Leg., R.S., ch. 25, 1995 Tex. Gen. Laws 287](#))

Section 7a Grants Of Easements By Commissioners Court

The Commissioners Court of Harris County shall have the power to grant to any person, firm or corporation an easement or right of way over, along or across any public road or highway, street or alley in Harris County and under the jurisdiction of the Commissioners Court of Harris County outside of the limits of any incorporated city or town. The terms or conditions under which such person, firm or corporation shall use or occupy such easement or right of way shall be specifically set forth in the minutes of the Commissioners Court, and any terms or conditions of any agreement relating thereto not so set forth shall be void. The Court may prescribe such reasonable conditions or restrictions as it may find necessary or desirable, including the charging of a reasonable compensation and the fixing of the amount and conditions of a bond or bonds to be entered into by such person, firm or corporation relating to the use and occupancy of the easement and right of way. Such bond, when executed, shall continue in full force and effect during the use and occupancy of the easement or right of way by the person, firm or corporation to whom it is granted, and shall not be affected or released by any subsequent change in the personnel of either parties to the agreement. No such easement or right-of-way shall be granted when it impedes or seriously interferes with the use and occupancy of such public thoroughfare as such; nor shall any such easement or right of way be granted without provision being made upon the part of the grantee for the protection and repair of the road or thoroughfare by suitable bond. Any grant made without such bond shall be void.

([Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Gen. Laws 358](#))

Sec 8 Failure To Perform Duties Of A County Commissioner

It is hereby specially provided that it shall not be unlawful for any County Commissioner to engage in any other occupation or business, but should a County Commissioner, by virtue of such other business or occupation, fail or neglect to perform his duties as County Commissioner, or as Precinct Road Supervisor, he shall be subject to removal from office, in the manner provided by law for the removal of County officers. A failure to attend meetings regularly shall be grounds for such removal.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

Sec 9 Purchases

The Commissioners Court of Harris County shall make necessary purchases and enter into such contracts as are necessary to carry out the purposes of the Harris County Road Law.

The making of all such purchases shall be subject to all of the provisions of the general laws applying to Harris County governing the budget, accounting, approval and countersignature of warrants, depository

laws and such reasonable regulations as may be made under authority of law.

[\(Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Gen. Laws 358\)](#)

Sec 10 Final Accounting

Upon the death, resignation or retirement of any officer or employee, the Auditor shall require an accounting of all property of every kind of the County or its political subdivisions of which he has custody, possession, control or supervision, and shall not approve the payment of any sums to such officer or employee or his estate until such accounting is made.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64\); Act of May 17, 1979, 66th Leg., R.S., ch. 422, 1979 Gen. Laws 915\)](#)

Sec 11 Repealed

The Legislation repealing Sections 11 and 12 provides: "The provisions of General Laws applying to counties of the population of Harris County with respect to depositories, budgets, accounting, approval and countersignature of warrants, shall govern and control all purchases and contracts made under authority of this law, except as herein otherwise expressly provided. Eminent domain proceedings shall be governed by the General Statutes authorizing counties to institute and maintain such proceedings."

[\(Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Gen. Laws 358\)](#)

Sec 12 Repealed

The Legislation repealing Sections 11 and 12 provides: "The provisions of General Laws applying to counties of the population of Harris County with respect to depositories, budgets, accounting, approval and countersignature of warrants, shall govern and control all purchases and contracts made under authority of this law, except as herein otherwise expressly provided. Eminent domain proceedings shall be governed by the General Statutes authorizing counties to institute and maintain such proceedings."

[\(Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Gen. Laws 358\)](#)

Sec 13 Taking Of Material For Road

Said Court may enter upon and take from any land adjacent to or most convenient, or accessible to any public road of said County, earth, stone, gravel or other material necessary or suitable for the grading, construction, building, repair, improvement or maintenance of such road, excepting fuel and wood, paying therefore, if the owner of the land the Court can agree on the price thereof, the value of such material so taken, and the amount of damages, if any, thereby occasioned, to such land or appurtenances; but if such owner and the Court cannot agree thereon, the value of such material and the damages, if any, may be ascertained, determined and paid, under the next preceding section of this Act, as same shall be applicable to such case.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64\)](#)

Sec 14 Cleaning Ditches, Suit To Recover Costs

Whenever it shall be made to appear to the satisfaction of said Court that it is necessary for the better drainage of any public road or roads within said County, that the ditches along the right-of-way of any railway company, corporation, individual, association, or the receiver thereof in said County, should be opened and cleaned out, or the bar pits along such right of way emptied and drained, said Court may by an order entered upon its minutes, at a regular or special term of the Court, require any such railway

company, corporation, individual, association or the receiver thereof, whose ditches or bar pits are so constructed or so out of repair as to impede the easy and rapid flow of water accumulating on, along or near its right-of-way, to the nearest gully, ravine, creek, water course or outlet, and it shall be the duty of said railway company, corporation, individual, association or the receiver thereof, in reference to which said order is made and entered, within sixty days after a certified copy of said order shall have been delivered to any general officer of such railway company, association or corporation, or to said individual or person, or to any agent of such railway company, association, corporation, individual or person, in said County, to supply proper and sufficient drainage in the premises, and within sixty days thereafter to commence the work so ordered to be done, and to continue such work with reasonable dispatch until its completion, to the satisfaction of said court; and in the event such railway company, corporation, individual, association or the receiver thereof, shall fail to comply with the terms of said order, and shall fail to commence work within sixty days from the day of such service of such certified copy of such order, and finish the same within reasonable time, the Commissioners Court shall have said work performed, keeping an accurate account of the money expended upon said work, and the value of said work and material may be recovered from the railway company, corporation, individual, association or the receiver thereof, along whose right-of-way said work was done, at the suit of the County for the benefit of its road and bridge fund, in any court of competent jurisdiction in Harris County.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

Sec 15 Petition For Proposed Road

Whenever there shall be filed with the County Clerk any petition for a road under any law now in force or that may hereafter be enacted, it shall be his duty at once to notify the precinct road supervisor, who shall, as early as practical, inspect the route of the proposed road, and shall make a report to the Court as to the advisability of granting or refusing said petition, or of changing the route or class of said road; and no jury of view shall ever be appointed to lay out any road until such report by the precinct road supervisor has been made, either in writing or in open court and a minute made of same.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

Sec 16 Control Of County Roads

The Commissioners Court shall have control of all matters in connection with the construction and maintenance of County roads, bridges and drainage, except such as it may from time to time, by resolution, delegate to the precinct road supervisor, and then under such rules and regulations as it may prescribe, and subject to their recall at its pleasure.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

Sec 16-A In Areas Annexed By Municipalities

The Commissioners Court shall have control over all matters in connection with the construction and maintenance of all roads, bridges, drains, culverts and ditches, formerly located outside the city limits of any city, town or village, which has become a part of said city, town or village by reason of annexation of new territory and where legality of said annexation has been contested and final decision has not been determined by the Courts. Provided, that the authority herein given the Commissioners Court shall cease when the litigation over the validity of the annexation is finally disposed of.

([Act of March 14, 1957, 55th Leg., ch. 27, 1957 Tex. Gen. Laws 49](#))

Sec 17 Clerk Of Commissioners Court

Should the Commissioners Court deem it advisable, it shall have the right to require the County Clerk to furnish all clerical assistance necessary to attend to the affairs of the Commissioners Court, and all clerical work connected with the official duties of the members thereof. For such clerical assistance the County Clerk shall be allowed a sum to be fixed by the Court, and this amount shall not be considered a fee of office, nor reported as such, and shall be paid out of the general fund of the County, or any other available fund. In addition to such clerical assistance furnished by the clerk, it shall be lawful for the County to employ such additional assistance as it may require.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

Sec 18 Auditor's Monthly Report

The County Auditor shall file a monthly report with the Commissioners Court, which shall include the receipts and disbursements of all the funds of the County, and the status of all budget appropriations. This report shall contain a statement of any bond or special funds which the County may have. It shall be certified to by the County Auditor and published by him once in a daily newspaper published in Harris County.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#)); ([Act of March 1, 1927, 40th Leg. ch. 17, 1927 Tex. Spec. Laws 179](#); ([Act of March 4, 1931, 42nd Leg., ch. 15, 1931 Tex. Spec. Laws 34](#))

Sec 19 Foremen, Superintendents And Other Employees

The Commissioners Court shall have full authority to employ road foremen, superintendents and such employees as it may deem proper, subject to the provisions of the General Laws with respect to budgets, accounting, depository, approval and countersignature of warrants, and certification of funds.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#)); ([Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Gen. Laws 358](#))

Sec 20 Reports: Tools And Supplies

Whenever any tools, machinery, wagons, supplies or other materials shall be delivered to any precinct road supervisor, road superintendent or other employee, he shall be charged by the County Auditor with same. He shall make monthly reports showing the disposition of same, which reports shall be made to the auditor and kept in a permanent file for the inspection of the finance committee and the Court, or other person interested.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

Sec 21 Road, Ditch Or Drain Crossing Railways

Whenever the Commissioners Court shall deem it advisable to lay out, on petition, or otherwise, any road, ditch, or drain, and same shall cross any railway, street railway, interurban railway, any canal or levee owned by any person, firm or corporation it shall have the right to do so whenever and wherever same shall be necessary, regardless of the distance to the next crossing, and, if compensation for damages cannot be agreed upon with the owner, then same shall be determined by a jury of view appointed by the Court in accordance with the law governing the laying out of roads by juries of view, insofar as the same are applicable.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

Sec 22 Maximum Road Width

The Commissioners Court shall have the right to lay out roads to a width of not more than one hundred and twenty feet, provided same shall connect with main roads leading into the city of Houston.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

Sec 23 Weight Limits

Whenever any person, firm, corporation or individual shall contemplate, or be engaged in hauling any load or loads, which by virtue of the great weight or great number of same, are calculated to damage any paved or graded road to an extent greater than the average wear and tear to which the road is ordinarily subjected by the travel of the public, the Commissioners Court shall have the right, and it shall be its duty, to prohibit the said use of the road, or to require a bond or a cash deposit to cover damages. Any person violating such order of the Court shall be guilty of contempt, and may be punished as now provided for contempt of the Commissioners Court, and in addition shall be liable in damages to the County for all damages thus caused.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

NOTE: See also [Act of March 4, 1931, 42nd Leg., ch. 282, 1931 Tex. Spec. Laws 507](#) (provisions relating to regulation of weight, height, and length of vehicles codified in [Chapter 621](#) and [Chapter 623](#) of the Texas Transportation Code.).

Sec 24 County Engineer

The Commissioners Court shall have the right at the first meeting after they shall be sworn in, or as soon thereafter as possible, to select a competent engineer to act as County Engineer. He shall hold office during the tenure of office of the Court by which he was elected, and shall receive such salary and shall perform such professional services as may be agreed upon at the time of his selection. A contract shall be entered into embodying the terms of his employment and signed by the said engineer, and the County Judge, and recorded in the minutes of the Court. Provided, that this contract may be made with any person, firm, or engineering corporation in like manner as it may be made with an individual, and provided further, that this shall not conflict with the terms of existing contracts, if any.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

Sec 25 Repealed

From the statute: "Sections 25, 26 and 27, of Acts 1913, Regular Session, Special Laws, Page 64, Chapter 17, relating to the employment of convicts and convict labor, are hereby repealed."

([Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Spec. Laws 358](#))

Sec 26 Repealed

From the statute: "Sections 25, 26 and 27, of Acts 1913, Regular Session, Special Laws, Page 64, Chapter 17, relating to the employment of convicts and convict labor, are hereby repealed."

([Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Spec. Laws 358](#))

Sec 27 Repealed

From the statute: "Sections 25, 26 and 27, of Acts 1913, Regular Session, Special Laws, Page 64, Chapter 17, relating to the employment of convicts and convict labor, are hereby repealed."

[\(Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Spec. Laws 358\)](#)

Sec 28 Road Bonds; Auditor's Countersignature

Should Harris County deem it expedient to issue bonds for the construction of lasting and permanent roads or bridges, or both, it may do so in the manner provided by the General Laws; provided, that where bonds are voted for a specific purpose, it shall not be lawful to use any funds so derived for any other purpose, unless there shall remain a surplus after the final completion of the improvements for which said bonds were voted, and the County Auditor shall not countersign warrants in payment of claims against said funds except in accordance with this Section.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64\); Act of March 4, 1931, 42nd Leg., ch. 15, 1931 Tex. Spec. Laws 34\)](#)

Sec 28-A Duties Of County Auditor

It shall be the duty of the County Auditor to install and maintain a modern accounting system and to prescribe and prepare the forms to be used by all officials and employees in keeping their accounts and in reporting receipts and disbursements of all road and bridge funds, sinking funds, special funds, and funds from bond issues. No funds of the County shall be expended except by warrant duly authorized by the Commissioners Court, issued by the County Clerk, and countersigned by the County Auditor. The County Auditor shall countersign no warrant for the payment of any claim which has not been legally contracted. He shall have authority to require reports from all persons having charge or control of any property or funds of the County, and, in the event the County Auditor shall be unable to secure proper reports or an adequate accounting from any person or official with reference to the taxes, funds, fees, or property of the County, he shall have authority to enforce an accounting thereof, and to take such steps as are necessary to protect the interest of the County.

The County Auditor is authorized to employ such assistants and to purchase such books, equipment, and supplies as may be necessary to properly perform his duties. Harris County shall defray such expenses as may be incurred by the County Auditor in the enforcement of any duty with which he is charged under this Act. After due hearing, the Commissioners Court may make allowance for special services where such services are not required by the General Laws, and for which compensation is not prescribed.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64\); Act of March 4, 1931, 42nd Leg., ch. 15, 1931 Tex. Spec. Laws 34\)](#)

Sec 28-B Repealed

[\(Act of May 26, 1999, 76th Leg., ch. 923, § 5, 1999 Tex. Gen. Laws 3645\)](#)

Sec 29 Definition Of Road

Whenever in this Act, or any general law, the word "Road", is used, the same is hereby defined to mean in so far as Harris County is concerned, all road beds, ditches, drains, bridges, culverts and every part of every road, whether inside or outside of any incorporated city or town in Harris County, or not.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64\)](#)

Sec 30 Investment Of Sinking Funds

The Commissioners Court may from time to time invest the various sinking funds of the County not otherwise required, in its own bonds or in bonds of any district of Harris County, provided that the Commissioners Court of Harris County shall have the right to invest any of its sinking funds not otherwise required in the bonds of Harris County or of any district thereof, regardless of the maturities of the bonds to be purchased, where the interest to be derived from the bonds purchased shall be sufficient when deposited in the sinking funds of the bonds for which the investment is made to retire said bonds on or before maturity.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#); [Act of August 29, 1917, 35th Leg. 2nd C.S., ch. 1, 1917 Tex. Spec. Laws 29](#))

Sec 30-A Use Of Sinking Funds

That the Commissioners Court of Harris County in the State of Texas is hereby authorized and empowered, whenever it may be deemed advisable to use any sinking funds or sinking funds now on hand or hereafter acquired for the redemption and payment of any outstanding bonds of such County or Road District therein, for the purpose of purchasing, taking up and carrying any anticipation warrants of said county now issued and outstanding; and such anticipation warrants shall thereafter be extended in time of payment or refunded by the issuance of substitution warrants payable and maturing at such time or times as such Commissioners Court may select and fix; provided that no such anticipation warrants so taken up, or substitution warrants so issued in lieu thereof, shall by their terms mature at a date subsequent to the time of maturity of the bonds for the payment of which such sinking fund was created; provided, however, that no such anticipation warrants shall be so taken up with and by the use of such sinking fund or funds unless provision shall have been made at the time of the creation of such debt, or debts, evidenced by such warrants, for levying and collecting a tax sufficient to pay the interest thereon, if any, and providing at least two percent, as a sinking fund for the payment thereof, as provided in [Article 11, Section 7, of the Constitution of the State of Texas](#); and provided further that provision shall have been made, or shall be made, at the time of so taking up of such anticipation warrants or the issuance of substitution funding warrants in lieu thereof, so that sufficient tax shall be levied and collected each year to provide such sinking fund for the payment of such anticipation warrants within the time that the same, or the substitution funding warrants issued in lieu thereof, shall mature, such maturity date not to extend in any event beyond the time of maturity of the bonds or other obligations for the payment of which the sinking fund being used was created, as hereinabove provided.

([Act of July 19, 1919, 36th Leg. 2nd C.S., ch. 41, 1919 Tex. Spec. Laws 107](#))

Sec 31 Trains On Public Crossings

It is hereby declared to be unlawful for the crew on any train of any kind, or for any person in charge of same, to cause, allow or permit any train, car, engine, or part of a train, to be or to remain upon or across any public crossing, of any County road, for a longer period of time than ten minutes. By county road is meant any road used by the public and maintained at the expense of Harris County, in whole or in part. Any person who shall violate this provision shall be guilty of a misdemeanor, and shall upon conviction, be fined in a sum not less than five (\$5.00) dollars, nor more than one hundred dollars (\$100.00).

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#))

Sec 31-A Competitive Bidding

In all cases involving any contract, purchase or requisition in connection with any road or public highway in Harris County, if any person, or corporation shall bring suit against Harris County in any Court to recover for the value of any labor, material or supplies which were delivered to or acquired by any officer of Harris County in person or through his deputy or employee without compliance by such officer, deputy or employee, with the laws and regulations governing advertising for bids, taking of

proposals, or the making of contracts governing such matters, the County may implead such officer, deputy or employee, or all of then, in the suit. If recovery be had against the County in quantum meruit, or quantum valebat because such purchase, contract or requisition was void as not being in compliance with the laws governing it, then such officer, deputy or employee and the surety or sureties on their official bonds shall be jointly and severally liable for all attorney's fees, costs and expenses of every character incurred by the County or its attorneys in the defense of such suit; and in addition thereto, the claimant may plead and prove his reasonable attorney's fees and expenses incurred by him, and may have recovery thereof against such officer, deputy or employee and the sureties on their official bond; but nothing herein contained shall be construed as in anywise enlarging the liability of the County.

[\(Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Gen. Laws 358\)](#)

Sec 31-B Tunnels Under Bodies Of Water

The Commissioners Court of Harris County may enter into such contracts and agreements as it finds necessary with the United States, the State of Texas, or any officer, board or agency thereof, relating to or in connection with the construction of a tunnel or tunnels under any stream or body of water in Harris County or bordering on Harris County; and for the purpose of accomplishing the construction of such tunnel or tunnels, it may authorize the expenditure of bond funds or other funds available for the purpose. Such tunnels are hereby declared to be an essential public highway unit. Funds may be expended at such times, in such manner, and subject to such rules and regulations as may be agreed upon between the Court and the officer or agency. All such agreements so made shall be subject to the approval of the County Auditor and his certificate that funds are or will be available for the payment when due of obligations so created. When such contracts shall have been entered into, the money pledged for such purpose shall not be expended or diverted to any other purpose during the continuance of such agreement. Such agreement may be canceled only by mutual agreement of the parties. Funds may be paid to or through the agency with whom the contract is made in installments as the work progresses. All agreements for the construction of such works and the expenditure of such funds shall be in writing and one (1) executed copy thereof shall be filed with the County Auditor as a public record. No condition or requirement of such agreements or contracts not so reduced to writing and not so filed shall be binding upon the County.

Tentative agreements or contracts between the County and the United States or the State of Texas or any agency thereof relating to the construction of such tunnels heretofore entered into by Harris County and entered in the minutes of the Commissioners Court are hereby in all things ratified, validated and confirmed.

[\(Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Gen. Laws 358\)](#)

Sec 31-C Road Log, Right Of Way, Subdivision Plats

In acquiring rights-of-way for roads in Harris County, the Commissioners Court shall determine the width of the right-of-way required, and establish the lines and alignment of the road. All of the field notes of roads so established and determined shall be filed with the Commissioners Court and be recorded on the Road Log of Harris County, and no expenditures shall be made by the Commissioners Court upon any road not carried on the Road Log. The Commissioners Court may adopt a system for carrying roads on the Road Log with the required width of the right-of-way to be established by the Court. Provided, however, no road shall be carried on the Road Log or maintained by the County on a right-of-way less than twenty (20) feet nor more than 600 feet in width unless the right-of-way was laid out or established on or after January 1, 1963. No subdivision or plat of lands in Harris County outside of incorporated cities shall be filed for record by the County Clerk of Harris County, Texas, until such plat or subdivision bears the signature of the County Engineer to the effect that the roads, as indicated on the plat, have met the requirements of the system adopted by the Commissioners Court pursuant to this Section as to the width of the right-of-way and have a base and surface of at least twenty (20) feet in width with the base and surface meeting the minimum requirements prescribed by the

Commissioners Court by order duly entered in the minutes of said Court, and that all requirements of Harris County and the Harris County Flood Control District as to drainage have been complied with.

[\(Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64; Act of May 1, 1947, 50th Leg., ch. 205, 1947 Tex. Gen. Laws 358; Act of May 21, 1963, 58th Leg. ch. 369, 1963 Tex. Gen. Laws 940; Act of May 24, 1973, 63rd Leg., ch. 614, 1973 Tex. Gen. Laws 1688\)](#)

Sec 31-D Building Lines; Eminent Domain; Encroachment

- (a) Whenever the Commissioners Court of Harris County deems that the general welfare will be promoted thereby, it is hereby authorized and empowered to establish building lines on highways and roads, or any part thereof, in Harris County, and to prohibit any new building being located within such building lines outside of the corporate limits of any city, village or incorporated town in said County. Such Commissioners Court is further authorized and empowered to regulate and to limit and to change and amend by order such building lines on such highways or roads and to prohibit any new building being located within such building lines outside the corporate limits of any city, village or incorporated town within said County, subject to the provisions of subparagraph (d) hereof.
- (b) Before the adoption of any plan or the establishing of building lines on any highway or road in Harris County, the Commissioners Court shall hold at least one public hearing related thereto after having given at least fifteen (15) days' notice of the time and place of such hearing by the publication thereof in a newspaper having general circulation within Harris County, such publication being at least fifteen (15) days prior to the date of the hearing. If practicable, and solely at the discretion of the Commissioners Court, each landowner affected by the establishment of such building lines shall be given actual notice by United States Registered Mail of such hearing. Any hearing so set by the Commissioners Court may be continued from time to time until within the discretion of said Court all interested persons shall have had an opportunity to be heard. After the Commissioners Court has heard all interested persons and shall have found that the establishing of such building lines is for the general welfare of the County, said Court shall pass its resolution adopting such building lines. Such resolution shall contain an exact description of the area included within such building lines by either field notes or by map or by both, and a certified copy thereof shall be filed immediately with the County Clerk of Harris County. Thereafter the Commissioners Court may, upon public hearing with like notice thereof, amend, supplement, grant exceptions thereto, or alter the building lines so established as in its discretion it may determine necessary.
- (c) Upon the filing of the aforesaid resolution containing the full description of the area within such building lines, all persons shall be charged with notice of the requirements of such resolution and after the establishment of such building lines, no building or other structure shall be erected, constructed or substantially repaired, and no new building or other structure or part thereof shall be erected or re-erected within said lines so established, subject to the provisions of subparagraph (d) hereof.
- (d) In case any building or part thereof is erected, reconstructed or substantially repaired, or if any person shall by an overt act or other means indicate an intention to erect, reconstruct or substantially repair any building within the area as set by such building lines, then the County Attorney, upon resolution of the Commissioners Court giving due authorization, shall institute eminent domain proceedings to acquire the area within said building lines. If eminent domain proceedings are not instituted as herein provided within ninety (90) days after written notice, either of the erection, reconstruction, substantial repair or of the intention to erect reconstruct or substantially repair any building, has been mailed properly stamped and addressed to the Commissioners Court, 1001 Preston, 9th Floor, Houston, Texas, 77002, the building lines as established shall not affect damages to be paid in eminent domain proceedings thereafter

instituted to acquire said area within said building lines but such damages shall be determined and paid as though such building lines had not been established.

- (e) It is the intention of this Act to give the Commissioners Court of Harris County the right to protect from encroachment those areas which in the opinion of the Commissioners Court will be necessary for future rights-of-way for highways and roads within Harris County. It is not the intention of this Act to give the Commissioners Court the power to acquire property without due process of law and without proper compensation therefore.

([Act of May 14, 1953, 53rd Leg. ch. 385, 1953 Tex. Gen. Laws 924](#))

Section 31-E Sale Of Property Acquired For Roads

When the Commissioners Court shall determine that any real property or interest therein, heretofore or hereafter acquired by Harris County for road purposes, is no longer needed for road purposes, the Commissioners Court shall have the power to sell such real property, or when the Commissioners Court makes such determination, at its discretion it shall have the power to exchange any such real property needed by Harris County for road purposes. It shall be the duty of the Commissioners Court to determine the reasonable market value of any such real property to be sold or exchanged and when such property is to be exchanged, to determine also the reasonable market value of the property to be received in exchange. Provided, however, when the Commissioners Court determines that such real property should be sold, it shall be sold with the following priorities:

1. To abutting or adjoining landowners;
2. to the original grantors, their heirs or assigns of the original tract from whence said real property was conveyed; or
3. to the general public at public auction, notice of which sale shall be advertised at least twenty (20) days before the day of sale, by having the notice thereof published once a week for three consecutive weeks preceding such sale in a newspaper of general circulation in Harris County.

All monies derived from sales of such real property shall be deposited to the credit of the Road and Bridge Fund of Harris County.

When the right or interest of Harris County in any real property consists only of an easement or right-of-way for road purposes and the Commissioners Court determines that such property is no longer needed for road purposes, the Commissioners Court shall have the power to authorize execution of a quitclaim deed relinquishing all right and title and interest of Harris County thereto to the owner of the fee of such property. Whenever any real property or interest therein owned by Harris County and sold or exchanged and conveyed hereunder is being used by a public utility or common carrier having the right of eminent domain for right-of-way and easement purposes, the sale, exchange, conveyance and surrender of possession herein provided for shall be and remain in all things subject to the right and continued use of such public utility or common carrier.

([Act of May 22, 1967, 60th Leg., ch. 244, 1967 Tex. Gen. Laws 557](#))

Sec 32 Conflicts Of Interest

It shall be unlawful for any member of said Commissioners Court, or for any County officer of Harris County, to be or become financially interested, directly or indirectly, in any contract with said County, for road work, or for the purchase or sale of any material or supplies of any character, or in any transaction whatever in connection with any of the business of said county, excepting only his own salary, fee, or per diem. If any such County Commissioner, or such County officer, shall willfully violate any of the foregoing provisions of this Section, he shall be deemed guilty of malfeasance in office, and upon conviction thereof, shall be punished by a fine of not less than \$500.00, nor more than \$1,000.00, or by

imprisonment, in the County Jail of said County, for not more than one year, or by both such fines and imprisonments; and in addition thereto, shall be forthwith removed from office.

([Act of March 5, 1913, 33rd Leg., ch. 17, 1913 Tex. Spec. Laws 64](#); [Act of May 26, 1999, 76th Leg., ch. 923, § 4, 1999 Tex. Gen. Laws 3645](#))

Sec 33 Effect Of Other Laws

The provisions of this Act are, and shall be, held and construed to be cumulative of all General Laws of this State, on the subjects treated of in this Act, when not in conflict therewith, but in case of such conflict, this Act and the rules and regulations adopted under this Act shall control as to Harris County.

([Act of June 19, 2009, 81st Leg., ch. 1393 Tex. Gen. Laws 4366](#))

Subchapter 41B - Rules For The Construction Of Facilities Within Harris County And Flood Control District Rights-Of-Way

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Editor's note—The Order of July 29, 2020 was effective October 1, 2020.

Rules of Harris County, including the Harris County Toll Road Authority, a Division of Harris County, and the Harris County Flood Control District For the Construction of Facilities Within Harris County and the Harris County Flood Control District Rights-of-Way

As Amended: July 28, 2020

Effective: October 1, 2020

Sec 1 Authority To Adopt Rules Under This Subchapter

These Rules are adopted by the Commissioners Court of Harris County, Texas pursuant to the authority granted to it by [Section 2](#) of the [Harris County Road Law](#) Acts 1913, 33rd Legislature, Chapter 17, the [Harris County Flood Control District Act, Acts of 1937, 45th Legislature, Chapter 360](#), and the [Texas Water Code Section 49.211](#), as amended, and other applicable law. In addition, Harris County has the authority through [Chapter 284](#) and [Section 373.101 of the Texas Transportation Code](#) to operate and maintain a county toll road system.

([Order of 7-28-2020](#), § 1)

Sec 2 Jurisdiction

These Rules apply to all Work on Facilities within Harris County, including the Harris County Toll Road Authority, a division of Harris County, or Harris County Flood Control District rights-of-way.

([Order of 7-28-2020](#), § 2)

Sec 3 Purpose

The purpose of these Rules is to protect the public, to maintain safe and efficient operating rules, and to preserve and maintain the integrity of Harris County and Harris County Flood Control District rights-of-way for their intended purposes.

([Order of 7-28-2020](#), § 3)

Sec 4 Construction Of Rules

The Code Construction Act of Texas ([Chapter 311 of the Texas Government Code](#)) applies for the purpose of construing these Rules unless an alternative instruction, definition, or application is contained herein. These Rules must be liberally construed to give effect to its purpose.

{Cross Reference [Chapter 1, Section 2.3 \(Code Construction Act\)](#)}

{Cross Reference [Chapter 1, Section 2.6](#) (liberal construction)}

([Order of 7-28-2020](#), § 4)

Sec 5 Definitions

As used in these Rules, the following words and phrases have the following meanings:

"Applicable Criteria" - Specifications, standards, guidelines, rules, and regulations, adopted by Commissioners Court acting as the governing body of HC and HCFCD, and/or applicable State or Federal law.

"Applicant" - A Person who makes a formal application to Work in HC or HCFCD ROW.

"As-Built Drawings" - As-Built Drawings are a revised set of drawings submitted by the Applicant upon completion of the approved Work. They reflect all changes made in the specifications and Construction Drawings during the construction process, and show the exact dimensions, geometry, and location of all elements of the Work completed under the Certificate.

"Certificate" - Document that HC issues that shows that the Applicant has complied with these Rules to Work in HC or HCFCD ROW.

"Commissioners Court" - Commissioners Court of Harris County, Texas. {Cross Reference [Chapter 1, Section 2](#) (Commissioners Court)}

"Construction Drawing" - Drawings used to construct a proposed development or roadway and drainage facilities or any other constructed Facility.

"County Engineer" - The County Engineer of Harris County, Texas or any employee authorized by the County Engineer to act on his or her behalf. {Cross Reference [Chapter 1, Section 2.1](#) (Engineer)}

"County Road" - All roads operated and maintained by Harris County and listed on the Harris County Road log. {Cross Reference [Chapter 1, Section 2.1](#) (County Road)}

"District Engineer" - The Executive Director of the Harris County Flood Control District or any employee authorized to act on his or her behalf.

"Emergency Repair" - The repair of a failure causing an imminent threat to public safety.

"Facility, Utility, or Infrastructure" - Any pipeline, main, conduit, cable, utility line, pole line, sewer line, water line, outfall pipe, monitoring well, soil boring, flood control feature and infrastructure associated with storm water drainage, building, fencing or any other structure other than a driveway/roadside culvert as outlined in the Applicable Criteria, or any other structure that provides the service (such as supply of electricity, water, sanitary, gas, communications, tolling services etc.) that is provided to the public. A turn lane and median cut are included in this definition. Not included in this definition are service taps from a mainline (water, sewer, gas or cable) serving a single-family residence. For the purposes of these Rules, Utility and Facility and Infrastructure are interchangeable.

"Harris County Toll Road System" - a system of about 127 miles of roadway in Harris County that currently includes the following toll roads - Westpark Tollway, Sam Houston Tollway, Hardy Toll Road, which includes the Downtown Hardy Toll Road Extension, Tomball Tollway, Katy Managed Lanes and the Fort Bend County Toll Road Extension.

"HC" - Harris County, a political subdivision of the State of Texas. {Cross Reference [Chapter 1, Section 2.1](#) (HC)}

"HCFCD" or "District" - Harris County Flood Control District, a political subdivision of the State of Texas. {Cross Reference [Chapter 1, Section 2.1](#) (HCFCD)}

"HCTRA" - Harris County Toll Road Authority, a division of Harris County, Texas. {Cross Reference [Chapter 1, Section 2.1](#) (HCTRA)}

"HCTRA Executive Director" - The Executive Director of the Harris County Toll Road Authority or any employee authorized to act on his or her behalf.

"High Pressure Pipeline" - Any pipeline designed to transport a liquid or gas at a pressure equal to or in excess of 60 pounds per square inch.

"Landscaping" - The placement of trees, shrubs, or plants for the purpose of beautification of an esplanade(s) or other HC or HCFCD ROW.

"Master-Planned Community" - A subdivision equal to or greater than 1,000 acres.

"Monument" - Any structure displaying a subdivision name or other type of identification usually placed at the entrance of a subdivision in HC ROW. This definition does not include signs on private property or traffic control signs. Message boards or electronic displays are prohibited.

"Network Node" - Equipment at a fixed location that enables wireless communications between user equipment and a communications network, including equipment associated with wireless communications, a radio transceiver, such as an antenna, a battery-only backup power supply, and comparable equipment, regardless of technological configuration, or a coaxial or fiber-optic cable that is immediately adjacent to and directly associated within particular installation.

"Permanent Utility" - A structure that provides the service (such as a supply of electricity, water, sanitary, gas, communications, etc.) that is provided to the public. The difference between a Utility and a Permanent Utility is the ease of relocation. If the Utility cannot be relocated easily within thirty days of notice it shall be considered a Permanent Utility. Examples of Permanent Utilities include, but are not limited to: gas lines over three inches in diameter, any duct-bank, sanitary sewers over twelve inches in diameter, water lines over six inches in diameter, telephone/power/communications line poles or Utility Poles over 18 inches in diameter at base or over 50 feet in height, and electrical, audio or visual cable buried in conduit.

"Person" - Any individual, contractor, corporation, partnership, limited partnership, joint venture or other legal or governmental entity. {Cross Reference [Chapter 1, Section 2.1](#) (Person)}

"ROW" - Right-of-Way. The area within the boundaries of a parcel or tract of land described in a document, including a real property instrument, plat or approved order of the Commissioners Court of Harris County, Texas, vesting a real property interest in HC or the HCFCD, whether in their own name or as the organized representative of the public. This definition includes the property for all toll roads that are a part of the Harris County Toll Road system, including all the land between the frontage roads for toll roads where Harris County has operation and maintenance authority by agreement with the Texas Department of Transportation. This definition does not include the land where the Texas Department of Transportation operates and maintains frontage roads adjacent to a toll road on the Harris County Toll Road System. {Cross Reference [Chapter 1, Section 2.1](#) (ROW)}

"ROW Corner Cut-Back" - Corner cut-backs of ROW at street intersections are necessary to provide sufficient public space for pedestrian sidewalk facilities and ramps (compliant with Americans with Disabilities Act - ADA and Texas Accessibility Standards-TAS), traffic control devices, street signs, street lighting, traffic signal equipment, and all surface encroachments which could prevent the future installation of such equipment within the cut-back area. Refer to the [Geometric Design Guidelines for Subdivision Streets, Harris County and City of Houston](#).

"ROW User" - Any Person performing Work within a HC or HCFCD ROW.

"Statutory Authority" - The legislatively created right conferred upon Utility companies, and certain other corporations providing an essential public service, to lay, install, construct, maintain and operate facilities over, under, across, on, or along a public roadway or a public waterway.

"Tolling Facility" - Includes, but is not limited to, a pull box, junction box, equipment buildings, equipment cabinets, electrical supply, and water supply facilities associated with toll roads.

"Utility Pole" - A pole used to support lines, cables, antennas, or any other Utility or Permanent Utility above ground level.

"Variance" - A written approval of a deviation from these Rules.

"Work" - Laying, constructing, maintaining or repairing any Facility.

([Order of 7-28-2020](#), § 5)

Sec 6 Right-Of-Entry To County Or HCFCD Row

- A. No Person shall enter upon HC or HCFCD ROW for the purpose of any Work of any Facility involving the disturbance of or placement on the soil, until the County Engineer, District Engineer, or HCTRA Executive Director certifies that all requirements set forth in herein have been met and the County Engineer issues a Certificate.
- B. The use of HCFCD ROW to gain access to other utility easements, or for other purposes including but not limited to: surveying, geotechnical investigations, or temporary construction lay-down areas, requires a temporary right-of-entry to be issued.
- C. HC or HCFCD employees are not required to comply with these Rules when working in their ROW. Contractors working on behalf of HC and HCFCD are also exempt provided they are performing Work in accordance with approved Construction Drawings.

([Order of 7-28-2020](#), § 6)

Sec 7 Construction Drawing Submittals

- A. HC handles the administrative functions of these Rules for the HCFCD and HCTRA and will issue all Certificates for the purpose of these Rules.
- B. The Applicant shall submit Construction Drawings to HC under these Rules for review and approval prior to start of Work. Approval must be shown on all applicable Construction Drawings for the proposed Work in HC or HCFCD ROW. HC will issue the Certificate once Construction Drawings are approved (by signature of appropriate agency(s)), the applicant has applied for a Certificate, produced the bond, and paid for the Certificate.

([Order of 7-28-2020](#), § 7)

Sec 8 Traffic Control

Traffic control plans shall be submitted for any and all construction activity requiring a lane closure.

([Order of 7-28-2020](#), § 8)

Sec 9 Sealing Of Construction Drawings

All Construction Drawings for Work to be performed in the HC or HCFCD ROW must be sealed by a professional engineer or registered landscape architect, as appropriate, licensed in the State of Texas.

([Order of 7-28-2020](#), § 9)

Sec 10 Certificates, Fees And Bonds

The following must be submitted prior to any Work and the issuance of a Certificate. In addition to a Certificate, permits under other Harris County regulations, may be required for the Work.

- A. A completed Harris County Application for Construction in Harris County or HCFCD ROW on the form provided by the County Engineer;
- B. No new Construction Drawings are required if the plan set was previously reviewed and approved and the approved Construction Drawings are on file electronically;
- C. The Construction Drawings shall clearly show compliance with these Rules and compliance with Applicable Criteria. Notwithstanding any other provisions to the contrary, Certificates issued based on approved Construction Drawings that are later determined to be in noncompliant with these Rules are subject to the Certificate Suspension as provided in [Section 32](#);
- D. A bond in the appropriate amount as outlined in [Table 1](#) unless a perpetual bond is already on file with HC;
- E. The fee in the amount set by Commissioners Court and listed on the [HC Permit Fee Schedule](#). The [Permit Fee Schedule](#) is available online on the [HC Permits website](#). The [Permit Fee Schedule](#) utilizes pertinent definitions contained within these Rules.

([Order of 7-28-2020](#), § 10)

Sec 11 Emergency Repairs

A Person may enter upon land acquired, claimed, or maintained by HC or HCFCD to make immediate Emergency Repairs to a Facility where Work must be completed to prevent damage to the HC or HCFCD ROW. Failure to follow these procedures might result in a shutdown of the Work.

- A. In case of emergency, the ROW User or Applicant must notify HC by completing and submitting the Emergency Work Form located on the HC Permits website prior to 4:00 pm the following business day. The ROW User or Applicant shall contact HCTRA Maintenance Department at 832-590-6936 48 hours prior to starting construction on HCTRA ROW. For any construction in HCTRA ROW, ROW User does not need to complete and submit the Emergency Work Form. No Work shall commence until appropriate advance warning signs, markers, cones, and barricades are in place. After the Emergency Repair is completed a Certificate must be obtained prior to restoring the ROW.
- B. Emergency Repairs can be completed to prevent further Facility damage, environmental damage, or property loss. The permanent repair must comply with these Rules.
- C. Once issued, a copy of the Certificate must be on site at all times.
- D. Construction Drawings for Emergency Repairs must be submitted to HC within five calendar days from the start of Emergency Repair Work.

([Order of 7-28-2020](#), § 11)

Sec 12 Interference With Use Of The Row

- A. No Person shall perform any Work in such a manner as to obstruct access or interfere with the construction alteration, access, improvement, enlargement, operations, capacity enhancement, maintenance, or repair of any HC or HCFCD ROW.

- B. In the event that any Facility interferes in any manner with the construction, maintenance, access, improvement, enlargement, capacity enhancement, or repair of any HC or HCFCD ROW, the Person in control of the Facility shall alter the Facility in such a way so as to mitigate the interference no later than 30 days after notice from the County or District Engineer. If the interference restricts the ability to collect tolls on any toll road in the Harris County Toll Road System, the Person in control of the Facility shall alter the Facility no later than 24 hours after notice from the HCTRA Executive Director to remove the interference. Additionally, under the terms of the right of entry agreement, the ROW User may be required to pay all costs stemming from the interference, including, but not limited to, loss of revenue, loss of data, and costs of mitigation.
- C. In the event rain is in the forecast, the ROW User shall remove any construction material, equipment, low water crossings, or other temporary structures that would negatively affect the ability of the Facility to convey stormwater prior to the onset of rain.
- D. No Person shall perform any Work in such a manner as to constitute a danger or hazard of any kind to Persons or vehicles using or maintaining any HC or HCFCD ROW, or any public property located within the boundaries of the ROW.
- E. No Landscaping higher than 30 inches measured from top of curb at mature growth and no Monuments shall be placed in the ROW Corner Cut Back. No Landscaping or Monuments shall be placed on HCFCD ROW without prior HCFCD approval. No Landscaping shall be placed on HC ROW adjacent to a Tolling Facility without prior HCTRA approval.

([Order of 7-28-2020](#) § 12)

Sec 13 Trenching

A. No trench shall be opened for the purpose of laying pipes, conduits or ducts for a distance greater than can be backfilled on the same day before sunset.

B. In all cases where soil is piled along the side of a trench cut for Work on utilities parallel with a road, weep holes shall be dug through such piles of soil in order that water may drain from the roadbed and shoulders to the road ditches or back slope interceptors, as appropriate. Weep holes shall be dug according to the following specifications:

- i. at intervals not to exceed 200 feet along such parallel construction, and at all swags or low places in the roadbed of such County road;
- ii. to a depth of six inches below the shoulder of such County road and a width of 12 inches; and
- iii. to the road ditch, or to such an elevation that the bottom of the weep holes will discharge their water into the road ditch.

C. The weep holes must be maintained free of obstruction until construction is completed and the trench backfilled, tamped and leveled true to the original grade. If weep holes have not been properly constructed or maintained, operations shall cease until same are corrected. The contractor shall maintain storm water flow in its pre-existing condition.

D. At no time will the ROW User place excavated or backfill material upon the roadway surface. The excavated or backfill material shall be placed in such a manner to minimize the probability of sloughing onto the roadway surface.

E. Do not cast or place material, either temporarily or permanently, on top of the HCFCD channel bank.

([Order of 7-28-2020](#), § 13)

Sec 14 Use Of The Roadway

- A. The operation of construction or maintenance equipment on the traveled surface of any improved County road is prohibited unless installation of utilities cannot be accomplished by any other method. In such instances, the equipment shall use rubber tires on said traveled surfaces. Tracked equipment may not be used on the traveled surface unless protective measures are taken to protect the traveled surface. If traffic on a toll road in the Harris County Toll Road System has to be halted for any reason due to ROW User's Work, ROW User shall pay to HCTRA the cost of loss in revenue, loss of data, and costs of mitigation. If a toll lane on the Harris County Toll Road System is closed without prior approval, HCTRA will pursue all costs incurred as a result of the lane closure under the terms of the right of entry agreement.

([Order of 7-28-2020](#), § 14)

Sec 15 Notification Prior To Work

In addition to obtaining a Certificate from HC, Applicants or ROW User shall submit the following notifications, as applicable:

- A. HC ROW: Applicant shall submit online the *Notification of Job Start* form provided on the HC Permits website and shall additionally provide written notice to the appropriate Commissioner's Precinct or HCTRA, where applicable, at least 48 hours excluding weekends and holidays before any Work is performed in the HC ROW which involves disturbance of the soil. A copy of the Certificate under [Section 6](#) of these Rules must be on site at all times. Failure to follow these procedures might result in shut down of the Work.
- B. HCTRA ROW: Applicant shall contact HCTRA Maintenance Department at 832-590-6936 48 hours prior to starting construction on HCTRA ROW.
- C. HCFCD ROW: Submit a *48 hour Pre-Construction Notice* form to HCFCD as outlined on the Certificate prior to any Work performed in the HCFCD ROW. Failure to follow these procedures might result in shut down of the Work.
- D. In cases of Emergency Repairs requiring immediate Work, refer to [Section 11](#).

([Order of 7-28-2020](#), § 15)

Sec 16 Utilities

ROW Users shall comply with the following provisions, as applicable:

I. HC

- A. All underground Utilities that cross improved HC ROW shall be jacked, tunneled, bored, or driven under the road for the full width of the improved portion of the road. Improved County roads, as used within this subsection, are defined as any road surfaced with a material other than soil. The improved portion is considered as that portion of the road lying between the front slope of each ditch, or on curb and gutter sections, the area lying between the back of each curb.
- B. All underground Utilities, except High Pressure Pipelines and Permanent Utilities that cross HC ROW shall be installed at the greater of the following depths:
1. at least four feet below the crown of a County road; or
 2. two feet below the bottom of the ditches on each side of a County road;

- C. Such depth distances shall be measured from the top of such Utilities to the bottom of the road ditch, or crown of the road, as the case may be; unless by reason of proposed or anticipated changes in the grade of such HC ROW the County Engineer may determine that a greater depth is advisable.
- D. On curb and gutter sections, all underground Utilities, except High Pressure Pipelines, Permanent Utilities, that cross County roads shall be installed at a minimum of two feet below the bottom of the slab at the gutters. Such depth distance shall be measured from the top of such Utility to the bottom of the slab at the gutter. However, in particular instances where it is determined by the County Engineer that a greater depth is required, such Utility shall be installed at the depth required by the County Engineer.
- E. All Utilities, except High Pressure Pipelines and Permanent Utilities, parallel to and within the ROW of any County road shall be laid, constructed, maintained and/or repaired at a distance of not less than four feet from the edge of the road. The distance shall be calculated from the portion of the road considered as the normal traveling surface to the nearest side of such Utilities. All Utility Work shall be in the area considered as the front slope of the ditch where practical. These underground installations shall be at such depth so as to provide a minimum of two feet of cover above the top of the buried structure.
- F. If the installation of any Utility requires a repose angle with respect to the edge of the traveling surface of the county road that exceeds 33 degrees, 41 minutes, 24 seconds (1 1/2: 1 slope), the ROW User shall furnish the County Engineer with soil testing laboratory reports indicating if shoring is required to safely preserve the road. The tests shall be at the sole expense of the ROW User. If reports indicate shoring is required at various areas or for the entire length of a trench, the owner and/or operator, at no expense to HC, shall install it.

Spacing for soil tests shall be at 1,000 feet intervals unless soil conditions indicate tests should be made at shorter intervals or as directed by the County Engineer.

- G. On curb and gutter sections, all Utilities other than Permanent Utilities paralleling the road should be a minimum four feet behind back of curb.
- H. All overhead Utilities constructed, maintained or repaired within HC ROW shall conform to current federal, state, and local rules and regulations.
- I. All underground Utility road crossings shall be clearly and permanently marked, on each side of the ROW, with warning signs indicating owner and type of installation, where practical. Utilities carrying water and domestic sewage are exempt from this requirement.

II. HCTRA

- A. All underground Utilities that cross a toll road in the Harris County Toll Road System shall be jacked, tunneled, bored, or driven under the road for the full width of the improved portion of the road.
- B. All underground Utilities, except High Pressure Pipelines and Permanent Utilities that cross a toll road in the Harris County Toll Road System shall be installed at the greater of the following depths:
 - 1. at least four feet below the crown of the road; or
 - 2. two feet below the bottom of the ditches on each side of the road;
- C. Such depth distances shall be measured from the top of such Utilities to the bottom of the road ditch, or crown of the road, as the case may be; unless by reason of proposed or anticipated

changes in the grade of such road the HCTRA Executive Director may determine that a greater depth is required.

- D. All Utilities, except High Pressure Pipelines and Permanent Utilities, parallel to and within the ROW of any County road shall be laid, constructed, maintained and/or repaired at a distance of not less than four feet from the edge of the road. The distance shall be calculated from the portion of the road considered as the normal traveling surface to the nearest side of such Utilities. All Utility Work shall be in the area considered as the front slope of the ditch where practical. These underground installations shall be at such depth so as to provide a minimum of two feet of cover above the top of the buried structure.
- E. If the installation of any Utility requires a repose angle with respect to the edge of the traveling surface of the County road that exceeds 33 degrees, 41 minutes, 24 seconds (1 1/2: 1 slope), the ROW User shall furnish the HCTRA Executive Director with soil testing laboratory reports indicating if shoring is required to safely preserve the road. The tests shall be at the sole expense of the ROW User. If reports indicate shoring is required at various areas or for the entire length of a trench, the ROW User, at no expense to HC, shall install it.

Spacing for soil tests shall be at 1,000 feet intervals unless soil conditions indicate tests should be made at shorter intervals or as directed by the HCTRA Executive Director.

- F. All Utilities, except High Pressure Pipeline and Permanent Utilities, shall be located no less than five feet from any structural appurtenance. The location of any bores larger than 48 inches, including, but not limited to those for drilled shaft foundations, retaining walls, and bridge decks are subject to HCTRA's discretion.
- G. All Utilities, except High Pressure Pipeline and Permanent Utilities, shall be located no less than two feet from any Tolling Facility.
- H. All overhead Utilities constructed, maintained or repaired within HC ROW shall conform to current federal, state, and local rules and regulations.

III. HCFCD

- A. All underground Utilities that cross HCFCD ROW shall be buried at the minimum depth specified in the Applicable Criteria and be installed with trenchless technologies. The minimum depth is based on the ultimate depth of the drainage facility. The applicant must contact HCFCD in order for HCFCD to determine the ultimate depth of the drainage facility.
- B. Pipelines and Utilities within HCFCD ROW and parallel to the channel or detention pond are not allowed.
- C. A ROW User without Statutory Authority or who wishes to perform Work on a non-drainage Facility must show written proof of an independent right or permission to perform the Work.
- D. Additional measures may be required to protect the HCFCD ROW from construction damage.

([Order of 7-28-2020](#), § 16)

Sec 17 Utility Poles

- A. Any Utility Pole line parallel to a County road shall be constructed with Utility Poles set no further than one foot from the ROW line. Utility Poles shall be one foot from the ROW line and a maximum of 18 inches in diameter, meaning no pole shall obstruct the ROW greater than two feet six inches from the edge of ROW.
- B. All overhead road crossings shall be constructed and maintained in accordance with the applicable provisions of the National Electrical Safety Code (NESC).

C. Utility Poles are prohibited from being placed within HCFCD ROW.

([Order of 7-28-2020](#), § 17)

Sec 18 Permanent Utilities

- A. All Permanent Utilities in HC ROW shall cross at a depth of 25 feet or greater below the crown of the road, unless they satisfy Conditions I, or II as outlined below.
- B. All Permanent Utilities in HC ROW running parallel to the road shall be buried a minimum of 25 feet below the crown of the road or greater unless they satisfy Conditions I or II as outlined below.
- C. All Permanent Utilities shall be located no less than five feet from any structural appurtenance. The location of any bores larger than 48 inches, including, but not limited to those for drilled shaft foundations, retaining walls, and bridge decks are subject to HCTRA's discretion. All Permanent Utilities shall be located no less than two feet from any Tolling Facility.
- D. Any poles, including Utility Poles, with a base or pole diameter greater than 18 inches in diameter are prohibited in the HC ROW. Traffic signal strain poles, high mast illuminations structures, and overhead traffic signal support structures are excluded from this requirement.
- E. All Permanent Utilities buried in HCFCD ROW must be buried at the minimum depth specified in the Applicable Criteria. The minimum depth is based on the ultimate depth of the drainage facility. The applicant must contact HCFCD in order for HCFCD staff to determine the ultimate depth of the drainage facility.
- F. Proposed Permanent Utilities parallel to the channel or basin within HCFCD ROW are typically not allowed, and any exceptions will require a variance and an agreement with HCFCD to address cooperation in relocating or protecting utilities for channel improvements or maintenance. For agencies that have an interlocal agreement adopted by Harris County Commissioners Court with HCFCD regarding this topic, variances for various construction projects will not be required.
- G. Network Nodes may meet the installation standards of Utilities if they are being attached to an existing Utility Pole and do not increase the height of said pole by more than 10 feet. Network Nodes on newly constructed Utility Poles may meet the installation standard of Utilities if constructed in accordance with the terms of this Section. For Network Nodes that meet the criteria of this Section, the requirements of these Rules shall supersede all of the requirements of the Harris County Location of [Communication Facility Structure Regulations](#). A Network Node must either be located within and/or all exposed elements must fit within an enclosure or space of not more than six cubic feet. A Network Node may not exceed a height of three feet above the existing or proposed structure or pole. A Network Node or any equipment attached to a Utility Pole may not protrude from the outer circumference of the existing structure or pole by more than two feet. Any other wireless equipment associated with the Network Node may not be more than 28 cubic feet in volume and may not protrude from the outer circumference of the existing or proposed structure or pole by more than two feet. Ground based enclosures that house Network Nodes, separate from the Utility Pole, may not be higher, wider, or deeper than three feet six inches.
- H. Other Permanent Utilities may be approved on a case-by case basis by the County Engineer or HCTRA Executive Director, where applicable, to reflect advancing technologies in the fields of Permanent Utilities.

Condition I:

Permanent Utilities may meet the installation standards of Utilities if they are located on a road ROW where the ultimate road section has been constructed or designed and the installation of the Permanent Utility will not interfere with the roads operation, maintenance, or repair.

Condition II:

Permanent Utilities may meet the standards of Utilities if the owner of the facility has an agreement with Harris County, HCFCD, or HCTRA, where applicable, governing cooperation in relocating Utilities for roadway or channel improvements. Said agreement must be approved by Commissioners Court as the governing body of Harris County.

([Order of 7-28-2020](#), § 18)

Sec 19 High Pressure Pipelines

A. HC

High Pressure Pipelines crossing County roads shall be installed at the greater of the following depths: minimum of six feet below the crown of the road, and a minimum of three feet below the bottom of the roadside ditch. In curb and gutter streets, the pipeline shall be installed a minimum of five feet under the bottom of the storm sewer. All measurements are from the top or bottom of the pipe and/or casing, whichever results in a greater separation depth. All High Pressure Pipelines must be cased and vented or have the equivalent protection in the design. Bore pits for High Pressure Pipeline installation shall be a minimum of 30 feet from the nearest through traffic lane and not less than 20 feet from the edge of the pavement. A professional engineer licensed to practice in the State of Texas must seal all High Pressure Pipeline Construction Drawings submitted and certify that the Construction Drawings meet all Federal and State requirements and guidelines for the specific design. Should pipelines meet the definition of Permanent Utilities those requirements shall govern.

B. HCTRA

High Pressure Pipelines crossing a toll road in the Harris County Toll Road System shall be installed at the greater of the following depths: minimum of six feet below the crown of the road, and a minimum of three feet below the bottom of the roadside ditch. All measurements are from the top or bottom of the pipe and/or casing, whichever results in a greater separation depth. All High Pressure Pipelines must be cased and vented or have the equivalent protection in the design. Bore pits for High Pressure Pipeline installation shall be a minimum of 30 feet from the nearest through traffic lane and not less than 20 feet from the edge of the pavement. A professional engineer licensed to practice in the State of Texas must seal all High Pressure Pipeline Construction Drawings submitted and certify that the Construction Drawings meet all Federal and State requirements and guidelines for the specific design. Should pipelines meet the definition of Permanent Utilities those requirements shall govern.

All High Pressure Pipelines shall be located no less than five feet from any structural appurtenance. This includes, but is not limited to, drilled shaft foundations, retaining walls and bridge deck.

All High Pressure Pipelines shall be located no less than two feet from any Tolling Facility.

C. HCFCD

All High Pressure Pipelines crossing HCFCD ROW must be buried at the minimum depth specified in the Applicable Criteria. The minimum depth is based on the ultimate depth of the

drainage facility. The applicant must contact HCFCD in order for HCFCD staff to determine the ultimate depth of the drainage facility.

([Order of 7-28-2020](#), § 19)

Sec 20 Excavation And Backfill

A. HC

Excavated spaces shall be properly backfilled as soon as possible, but no later than the same day before sunset unless given prior written approval from HC, HCTRA or HCFCD, as applicable. The ROW User shall remove from HC or HCFCD ROW any excavated materials found to be contaminated and dispose of the material in accordance with local, state and federal laws. New material with the equivalent soil characteristics to the surrounding soil shall be brought to the site for backfilling. Properly backfilled means filled in such a manner that the compacted density is equal to or greater than that of the surrounding undisturbed soil. All backfill materials shall be free from large (greater than three inches) lumps, wood, or other extraneous material. The backfill shall be placed in uniform layers not to exceed 10 inches in depth (un-compacted measurement), and each layer shall be compacted. Dry backfill material shall be wetted uniformly and shall be compacted by means of mechanical tampers or rammers, except that the use of compaction equipment of the type generally used in compacted embankments will be permitted on those portions that are accessible to such equipment. The County Engineer or HCTRA Executive Director, as applicable, may specify alternative backfill materials and methods on certain projects if deemed necessary. The backfilling shall be to the satisfaction of the County Engineer or HCTRA Executive Director, as applicable, and the appropriate Commissioner's Precinct, as appropriate.

Any back fill of a Permanent Utility shall be completed to Applicable Criteria.

B. HCFCD

Refer to HCFCD Applicable Criteria.

([Order of 7-28-2020](#), § 20)

Sec 21 Paving

- A. Paving for turn lanes, median openings, or road widenings shall be done in accordance with the Regulations of [Harris County, Texas for the Approval and Acceptance of Infrastructure](#) and the [Harris County Standard Engineering Design Specifications for Construction and Maintenance of Roads](#). All pavement cuts and repairs shall be done by a contractor with experience in street repair work. Traffic control devices and placement shall comply with the current edition of the Texas Manual on Uniform Traffic Control Devices (TMUTCD). In the event HC notifies the ROW User of non-compliance with any federal, state, or local requirements, HC may require testing of materials used in construction in or near the ROW to determine conformance with HC specifications, including, but not limited to, compaction tests on backfill materials, subgrade, base, asphaltic concrete, Portland concrete, and other construction materials as deemed necessary by the County. The ROW User shall, at their own expense, hire a testing laboratory with current accreditation by the American Association for Laboratory Accreditation, American Association of State Highway and Transportation Officials (AASHTO) or another nationally recognized accreditation agency that verifies compliance with ASTM E 329 and that demonstrates the laboratory's capabilities to perform applicable ASTM or AASHTO test procedures. The ROW User must submit the results to the County Engineer's Office or HCTRA, as applicable, prior to the final inspection by Harris County.

- B. Before HC releases bond, Applicant shall request a HC Inspection. Upon passing of the HC Inspection and release of the bond by HC, the Applicant shall guarantee and maintain all Work performed within the ROW for one year after passing of the HC inspection.

([Order of 7-28-2020](#), § 21)

Sec 22 Monuments

- A. Monuments may be located at the main entrance to a subdivision and at secondary entrances. They must be within the boundaries of the subdivision/development they identify. Nothing in these Rules shall be construed as restricting such authority as the County may have to remove or require the removal of any Monument within the ROW, whether or not constructed or maintained in conformance with these Rules.
- B. One Monument per allowed location is authorized within the median in subdivisions platted and recorded after January 1, 2005. Signs located on fences or fence-type walls may be allowed with no more than two signs per entrance. Either wall signs or median signs may be utilized, but not both. (Refer to [Regulations of On-Premise Signs in the Area of Municipal Extraterritorial Jurisdiction in Harris County](#) for wall sign permits).
- C. The maximum message area size is 75 square feet. The size is measured by boxing in the subdivision name lettering and any associated symbols. The maximum Monument height above top of curb is 12 feet unless restricted by proximity to curb. See [Figure 4](#) for proximity to curb requirements.
- D. The Monument shall be positioned such that it does not interfere with traffic visibility. Refer to the American Association of State and Highway Officials (AASHTO) for traffic visibility design criteria.
- E. Monuments shall not be placed in the ROW Corner Cut Back or in the visibility triangle.
- F. Monuments within Master-Planned Communities may vary from these requirements provided they do not exceed the equivalent amount of signage and are approved by the County Engineer.
- G. Monuments may be considered on medians of major thoroughfares provided that they meet all the requirements of these Rules and that the requestor dedicated the ROW and constructed the road.
- H. From the nose of the esplanade, maintain 350 to 400 feet of sight distance, based on three and one-half foot height of driver's eye and 35 to 40 M.P.H. posted or actual vehicle speed. Along the entire esplanade, the edge of Monument must be six feet or greater from the inside edge of curb. No Monuments with a height greater than three feet measured from top of curb for (refer to [Figure 4](#)):
1. 35 feet from nose to esplanade and a 10 foot clearance on each side; or
 2. 50 feet from nose of esplanade and a nine foot clearance on each side; or
 3. 100 feet from nose of esplanade and a seven foot clearance on each side.
- I. Monuments containing lights which are not effectively shielded as to prevent beams or rays of light from being directed at any portion of the traveled way from which the Monument is primarily viewed and which are of such intensity or brilliance as to cause glare or to impair the vision of the driver of any motor vehicle, or which otherwise interfere with any driver's operation of a motor vehicle, are prohibited.
- J. Any permanent Landscape feature must conform to the above set back requirements when placed in the ROW.

K. Monuments may not be placed where the Person or entity requesting the placement does not own the underlying fee, unless written permission is obtained from the fee owner.

L. Monuments are not allowed in HCFCD ROW.

([Order of 7-28-2020](#), § 22)

Sec 23 Soil Boring And Monitoring Well Requirements

- A. Construction Drawings submitted to HC under these Rules for the installation of soil boring(s) or monitoring well(s) shall include the proposed physical location(s) using a latitude and longitude coordinate as well as a site map with any proposed soil boring(s) or monitoring well(s) denoted. If during the installation of the soil boring(s) or monitoring well(s) a location needs to be altered due to unforeseen subsurface obstructions, the ROW User or Applicant shall submit an amended site map denoting the newly proposed latitude/longitude locations and obtain HC approval prior to installation at the altered location.
- B. ROW User shall install boring(s) and monitoring well(s) in accordance with state and federal requirements. The monitoring well(s) shall be flush mounted with a concrete collar and be secured/locked after each sampling event.
- C. ROW User shall remove all sampling and investigation-derived wastes from the HC or HCFCD ROW at the end of each Work day and dispose of them in accordance with federal, state, and local laws.
- D. ROW User or Applicant shall notify HC of any spills that occur in the HC or HCFCD ROW during performance of the Work, including installation of the monitoring well(s) or sampling events, as soon as possible, but not later than 24 hours of the spill. No later than 10 days after finalization, the ROW User or Applicant, will provide HC or HCTRA, as applicable, with any sampling data and/or reports related to clean-up or remediation of such spills in the HC and/or HCFCD ROW.
- E. No later than 30 days after written request from HC, HCTRA and/or HCFCD, as applicable, Applicant shall plug and abandon the monitoring well(s) in accordance with the Texas Commission on Environmental Quality (TCEQ) rules. Additionally, any monitoring well that is no longer actively being sampled shall be properly plugged and abandoned in accordance with the TCEQ rules. ROW User or Applicant shall notify HC or HCTRA, as applicable, upon completion of the plugging of the monitoring well(s) and provide all documentation of the completed Work to HC or HCTRA, as applicable, within 14 days of completion of the plugging.
- F. ROW User or Applicant shall provide HC copies of any and all final soil and/or groundwater sampling results and soil and/or groundwater monitoring reports generated or acquired by the ROW User as a result of the Work conducted in the HC and/or HCFCD ROW.
- G. Upon request by HC or HCFCD, the ROW User shall immediately make available to HC or HCFCD a site specific Health and Safety Plan, if required by law.

([Order of 7-28-2020](#), § 23)

Sec 24 Damage To Harris County Or HCFCD Row

- A. Any damage to any HC or HCFCD ROW, or structures on or in the ROW shall be repaired immediately and restored to the condition that existed before the damage took place. All repair or restoration shall be at the sole cost and expense of the owner or operator of such Facility. The ROW user shall notify HCTRA immediately if a HCTRA structure is damaged. Damages must be repaired to the satisfaction of the County Engineer, District Engineer, or HCTRA Executive Director, or their representative.

- B. Failure to repair damages sustained to HC or HCFCD ROW during performance of Work will be cause to notify the surety that provided the required bonds for the Work. The Work to be done pursuant to the Certificate and any repair and/or subsequent restoration of the ROW must be completed within the dates specified on the Certificate. In the event of circumstances beyond the control of the Applicant or when Work is prohibited by unseasonable or unreasonable conditions, HC may extend the dates upon receipt of a substantiated written request by the Applicant.
- C. If activities of the ROW User cause any disruption to HCTRA fiber or tolling equipment or in any way affect HCTRA's ability to collect tolls, under the terms of the right of entry agreement ROW User shall be responsible for any and all damages stemming from that disruption, including, but not limited to, loss of revenue, loss of data, and costs of mitigation.
- D. All earth materials, sidewalk, pavement, Utilities, conduits, crossing, irrigation, Landscaping, storm drainage Infrastructure, drainage features, Monuments, manhole covers, valve covers, meter box lids, or other improvements, which are damaged, disturbed, or removed by the ROW User shall be fully repaired promptly by the ROW User and/or Applicant to the reasonable satisfaction of HC, HCTRA, and HCFCD, as applicable.
- E. After any Work or excavation, the ROW User shall restore the ROW, including but not limited to trench envelope, pavement structure, and surrounding areas to the same or better condition than it was prior to the excavation. The restoration shall be made in accordance with applicable HC, HCTRA, or HCFCD Applicable Criteria within 30 days and the repair shall endure without failure for one year from the completion date of any repair.
- F. If any excavation cannot be backfilled the same day before sunset, the ROW User shall securely and adequately cover the excavation and maintain proper traffic barricades, safety fencing, and/or lights as required, from the time of the opening of the excavation until the excavation is completed.

([Order of 7-28-2020](#), § 24)

Sec 25 Vegetation Management

- A. No Work shall be performed in such a manner as to destroy, damage, install, or remove any Landscaping within the HC or HCFCD ROW unless prior approval has been received. To obtain approval, the Construction Drawings required in [Section 7](#) must clearly show any existing Landscaping and any proposed modifications. Failure to follow this procedure might result in job shut down at the discretion of the County Engineer or HCTRA Executive Director, as applicable. Any damaged or removed Landscaping must be replaced with an equivalent amount, size, and quality at a location designated by the County Engineer, HCTRA Executive Director, or District Engineer, as applicable. Proper ground cover (turf grass) must be replaced when any significant areas are disturbed and the ground cover removed.
- B. **HC**
 - 1. If Landscaping is proposed in the ROW, the minimum requirements must be followed. No tree or shrub planting exceeding three foot in height when mature shall be installed within 200 feet of any existing and/or proposed traffic signal pole or controller, regulatory or warning signs, or other traffic control devices. Refer to [Section 13](#) of the [Regulations of Harris County, Texas for the Approval and Acceptance of Infrastructure](#) for Landscaping on private property.
 - 2. At the nose of the esplanade, maintain 350 to 400 feet of sight distance, based on three and one-half foot height of driver's eye and 35-40 M.P.H. posted or actual vehicle speed. No plantings or Monuments with a height greater than three feet measured from top of curb for ([refer to figure 4](#)):

- a. 35 feet from nose to esplanade and a 10 foot clearance on each side; or
 - b. 50 feet from nose of esplanade and a nine foot clearance on each side; or
 - c. 100 feet from nose of esplanade and a seven foot clearance on each side.
3. Trees or bushes should not be located within 24 feet of any existing and/or proposed traffic signal pole or controller, regulatory or warning signs, or other traffic control devices. No tree or shrub plantings exceeding one and one-half feet in height will be allowed within 150 feet of a school crossing.
4. No Landscaping shall be placed so as to interfere with the visibility triangle.
5. Along entire esplanade:
 - a. Centerline of tree trunk must be six feet or greater from the inside edge of curb.
 - b. Tree branches shall be trimmed and maintained to a minimum of 24 inches from inside of curb to a height of 15 feet from top of curb and in accordance with ANSI standards A-300 (American National Standards for Tree Care Operations.)
 - c. No trees or plantings are allowed within 10 feet of a fire hydrant. The fire hydrant should not be hidden from view from the street by vegetation or structures.
 - d. Irrigation systems shall be positioned and directed so they do not spray upon the roadway or upon vehicles using the roadway systems.
6. For specimen trees 12 inch caliper and larger, the ROW User will provide a tree removal and replacement plan with the construction plans. Auger or tunnel construction methods under selected specimen trees must be used to the extent practicable. Replacement trees should generally have a minimum diameter of three inch caliper as established by the American Association of Nurserymen. Trees 12 inches and larger should be replaced with smaller trees being no less than three inch caliper and totaling the equivalent caliper diameter of the removed tree.
7. Replacement of trees should generally be the same type as the removed tree, unless directed otherwise by the County Engineer, HCTRA Executive Director, as applicable, or appropriate Precinct designee during the plan review. Specimen trees located in the ROW and adjacent to the contractor's Work area are to be fenced with four-foot high orange safety fencing. The limits of the fencing will be coordinated with a landscape professional and the appropriate Precinct designee and approved during plan review. Specimen trees smaller than 12 inches will be transplanted within the County's ROW as directed by the County Engineer, HCTRA Executive Director, as applicable, or the appropriate Precinct designee during the plan review.
8. The ROW User will utilize a Landscape Professional when necessary for the preparation of the tree removal and replacement plan. A Landscape Professional is defined to be an Urban Forester, Registered Landscape Architect licensed in the State of Texas, Certified Arborist or similar qualified professional.

(c) HCFCFCD

HCFCFCD may require a ROW user to provide Landscaping plans sealed by a Registered Landscape Architect licensed in the State of Texas detailing any vegetation management activities proposed with HCFCFCD ROW when the ROW User's work in the ROW will involve removal of trees.

1. Addition of Environmental Features

- a. For the proposed addition of environmental features such as Landscape plantings, refer to Applicable Criteria.
- b. Install Best Management Practices and establish turf to bare ground areas as soon after construction activities are complete. Establish turf in accordance with Applicable Criteria.

2. Tree Protection

- a. Protect trees to be preserved from construction damage by installing "tree protection zones" prior to commencing construction activities. Refer to Applicable Criteria.
- b. Show all trees to be protected on the Landscape plan drawings, include method of protection in the detail sheet.

3. Tree Removal

- a. Provide a tree replacement plan for all desirable trees designated to be removed. Tree replacement will be inch for inch of the same or similar species.

4. Tree Pruning

- a. Pruning of trees for vehicular or equipment access should only be done by Texas licensed and bonded tree care professionals. Prune only the minimum amount to gain access to the Facility, do not remove more than 1/4 of the tree's canopy.
- b. Prune trees in accordance with the ANSI-A300 Standard Practices for Tree Pruning guidelines.

([Order of 7-28-2020](#), § 25)

Sec 26 Liability

The owner of any Facility shall indemnify, defend and hold harmless HC and HCFCD, their officers, directors, agents, employees, successors and assigns from and against any and all claims and liability that arises or may arise due to any activities of the owner of the Facility, its agents, employees, or contractors that are performed on any HC or HCFCD ROW. The owner of any Facility shall also indemnify, defend and hold harmless HC and HCFCD, their officers, directors, agents, employees, successors and assigns from and against any and all expenses, including reasonable attorney's fees, which might be incurred by HC and HCFCD, in litigation or otherwise resisting said claims and liabilities.

([Order of 7-28-2020](#), § 26)

Sec 27 Variances

Requests for a Variance from the requirements of these Regulations may be submitted for consideration when based on sound engineering practice. Individuals requesting a Variance shall do so in writing clearly stating the provision(s) they want to vary from and why they need the requested Variance. They must also explain how they will provide equivalent measures to the provision from which they wish to vary or show good cause why the requirement in the Rules should not apply to their project. The Variance shall also include any other supplemental information requested.

The Variance will provide equivalent measures to the rule or criteria or will state good cause why the requirement in the Rules should not apply to the Work. A variance may be for a specific instance or may

be a blanket variance covering all work of a particular type by the requesting party. Variances may be granted through the execution of a written agreement signed by the requesting party and the County Engineer.

The denial of a variance request may be appealed in accordance with [Section 35](#) of these Rules. Any such appeals must be filed no later than 30 days after receipt of the determination.

([Order of 7-28-2020](#), § 27)

Sec 28 Construction Per Drawings

All Work must be performed in accordance with the approved Construction Drawings. Any deviations to the approved Construction Drawings must be submitted to HC and must be approved prior to commencing Work.

([Order of 7-28-2020](#), § 28)

Sec 29 Inspections

- A. HC, HCTRA, or HCFCD, as applicable, will determine, at their sole discretion, when additional inspections will be required during Work. Additional inspections will be required, at a minimum, prior to placement of bedding, backfill, or paving, prior to initiation of tunneling or boring operations, or placement of drainage infrastructure, and upon completion of Work included within the approved Construction Drawings. Contact information for notifying HC, HCTRA and HCFCD, as applicable, to request a final inspection are provided in the approved Construction Drawings and Certificates.
- B. HC, HCTRA or HCFCD Inspectors, as applicable, will be authorized to inspect all Work within the ROW and all materials that are proposed to be placed in the ROW. Such inspections may extend to all or any part of the Work performed within the ROW. The County Engineer has the authority to order the immediate cessation of any Work in the ROW if he or she deems it is a threat to the health, safety, or well-being of the public by suspending the Certificate as provided in [Section 32](#). The County Engineer or designee and the HCTRA Executive Director, as applicable, may order the immediate cessation of any Work if the ROW User does not have a Certificate.
- C. Failure to contact HC, HCTRA, or HCFCD in accordance with [Section 15](#) will be considered non-compliant with the terms of the Certificate and these Rules. HC, HCTRA, or HCFCD, as applicable, may require the removal of any part of or all of the Work, including Utility or paving that was constructed within the ROW.

([Order of 7-28-2020](#), § 29)

Sec 30 As-Built Drawings

Upon completion of construction, Applicant shall submit As-Built Drawings to HC. The As-Built Drawings must be signed and sealed by a Professional Engineer or Registered Landscape Architect, as appropriate, licensed in the State of Texas.

([Order of 7-28-2020](#), § 30)

Sec 31 Enforcement

- A. It is a violation of these Rules if a Person fails to follow any of the above listed provisions. Entry upon HC or HCFCD ROW is expressly conditioned upon compliance with these Rules and accurate representation to the County or District Engineer or HCTRA Executive Director

concerning the activity to be undertaken on HC or HCFCD ROW. A violation of these Rules constitutes a Class C misdemeanor and the County Engineer and HCTRA Executive Director may seek to obtain enforcement of said Rules on behalf of HC, or HCFCD in the appropriate Justice of the Peace Court. Additionally the County Engineer may refer violations of these Rules to the County Attorney for injunctive relief and/or a civil penalty.

([Order of 7-28-2020](#), § 31)

Sec 32 Certificate Suspension Procedures

Certificates shall be suspended in accordance with the following provisions:

- A. A Certificate is suspended when the County Engineer or their inspector advises the Applicant or ROW User that the Certificate is suspended and/or posts a written suspension notice at the jobsite.
- B. The following actions by the Applicant or ROW User are grounds for suspension of the Certificate:
 - 1. Non-compliance with these Rules;
 - 2. Non-compliance with any requirements in a Certificate;
 - 3. Deviating from the approved Construction Drawings and refusing to make required corrections;
 - 4. Warning or other traffic control procedures or equipment do not comply with TMUTCD;
 - 5. The Work is causing a public health, environmental, flood, or safety hazard;
 - 6. Any grounds for revocation of a Certificate as outlined in [Section 33](#).
- C. When the suspension notice is posted, the ROW User must immediately suspend all Work on the job except the Work necessary to abate the suspension. The suspension will be abated when the corrective Work is performed and has passed inspection. The abatement will be evidenced by the removal of the suspension notice by the County Engineer or his or her inspector that the Work has now been re- inspected and passed. The suspension notice shall not be removed by any person other than the County Engineer or his or her inspector and removal by any other person will be ineffective.

([Order of 7-28-2020](#), § 32)

Sec 33 Certificate Revocation

Grounds for a Certificate revocation are as follows:

- A. Material deviation from the Construction Drawings on file with the County Engineer, or a pattern of consistent deviation from such drawings and specifications which would demonstrate an intention to avoid conformity with the requirements of the Certificate or these Rules.
- B. Proceeding with work while the Certificate is suspended, other than such Work necessary to abate the suspension.
- C. An act or acts of violence or threat or threats of violence against the County Engineer, District Engineer, or HCTRA Executive Director, or their inspectors on or off the Work site for the purpose of intimidating the County Engineer, the District Engineer, the HCTRA Executive Director, or their inspectors, so that they will not perform their inspection duties.

D. Falsifying or submitting misleading information in the Certificate Application.

([Order of 7-28-2020](#), § 33)

Sec 34 Certification Revocation Procedures

Certificates shall be revoked in the following manner:

- A. The County Engineer shall file a complaint stating the reason for Certificate revocation with a Hearing Examiner to be appointed by Commissioners Court.
 1. The Examiner will set a hearing as soon as practicable, but not more than 30 days after receiving the complaint.
 2. The Examiner will deliver the original Complaint and Hearing Notice to the Clerk of Commissioners Court to be filed, give one copy to the County Engineer, and designate an appropriate person as Serving Agent and give two copies to him or her.
 3. The Serving Agent will take the two copies of the Complaint and Hearing Notice to the site and:
 - a. Hand one copy of the Complaint and Hearing Notice to the Applicant, or
 - b. If the Applicant is not an individual or cannot be found on the site, the Serving Agent will hand one copy of the Complaint and Hearing Notice to the person on the site who appears to be in charge, or
 - c. If no person can be found on the site, the Serving Agent will post the Complaint and Hearing Notice over the Certificate and/or Notice of Suspension posted at the job. Upon posting of the Complaint and Hearing Notice, the Certificate shall be suspended.
 4. The Serving Agent will fill in the return on the remaining copy, noting on it the date, time, and manner in which service was perfected, and sign the return and return the remaining copy to the Hearing Examiner.
 5. At the time set for hearing, if the return copy of the Complaint has been returned to the Hearing Examiner by the serving agent, and reflects that service has been perfected, the Examiner may proceed with the hearing.
 6. Hearings will be conducted before the Hearing Examiner in the manner provided for by [Section 35](#) of these Rules. The Examiner may delegate responsibilities of Hearing Examiner to his or her Assistant. The Examiner's decision and review by Commissioners Court are governed by [Section 35](#).

([Order of 7-28-2020](#), § 34)

Sec 35 Appeals For Suspensions And Variance Requests

- A. If an Applicant has his or her Certificate suspended, or is denied a variance request, he may appeal the denial or suspension as provided in this Section. The term "appellant" is used to refer to the appealing party. An appellant must seek his or her remedy under this procedure before seeking his or her remedy in court. Application for a Certificate is deemed to be a waiver of the right to challenge these Rules before exhausting remedies herein provided. The appeals process is as follows:

1. Appeals are initiated by the making of complaint with or by requesting an exception to the Rules from the Hearing Examiner in writing.
2. The Hearing Examiner will set a time for a hearing, which will be scheduled as soon as practicable but within 30 days of the receipt of the written complaint or request, and shall prepare a Notice of Public Hearing naming the time and date of the Hearing. Copies shall be distributed as follows:
 - a. The original copy and the Certificate to Commissioners Court will be filed with the Clerk of Commissioners Court and the Clerk will prepare a file for the Hearing Notice.
 - b. The Examiner will set up a working or hearing file, in which one copy will be kept.
 - c. The Examiner will give one copy to the Appellant.
 - d. The Examiner will deliver one copy to the County Engineer. The Hearing will be conducted as provided in this Section.
3. Appeal of a suspension will not abate the suspension pending the decision of the Hearing Examiner.

B. At Hearings before the Examiner, the Examiner will hear the testimony of the County Engineer and any witnesses called by the County Engineer. The Examiner will hear the testimony of the appellant and any witnesses called by the appellant. The Examiner will review all documents and exhibits submitted to him by the parties. The Examiner will not be bound by formal rules of evidence and will control the evidence, reserving the power to exclude testimony or exhibits not considered relevant. The Hearing Examiner will maintain an accurate record of the evidence adduced at the Hearing.

C. The Examiner will prepare a written decision within three working days of the Hearing. A copy of the decision will be filed with the Clerk of Commissioners Court, the members of the Commissioners Court, and with the County Engineer. The original will be sent to the appellant's address shown on the Certificate or application.

D. If a variance is granted, the County Engineer shall prepare the appropriate certificate with any special requirements that may be required by the conditions of the variance.

E. If the County Engineer or the appellant wishes to appeal the Examiner's decision, a written objection must be filed with the Clerk of Commissioners Court within 10 days from the date the Examiner's decision is filed. The Clerk will notify the Hearing Examiner who will place the matter on the Agenda of Commissioners Court for review at the next meeting of Commissioners Court. If the County Engineer files the objection, notice that the matter is on the agenda will be sent to the appellant by mail at the appellant's address shown on the Certificate or application. Commissioners Court will review the matter. The Commissioners Court may either affirm or reverse the decision of the Hearing Examiner. A suspension of a permit upheld by the Hearing Examiner will not be abated pending the review of Commissioners Court.

([Order of 7-28-2020](#), § 35, [Order of 8-29-2023](#))

Sec 36 Appeals For Certificate And Inspection Decisions

A denial or conditional approval of a Certificate application or inspection decision may be appealed to Harris County Commissioners Court in accordance with this section.

The Applicant must file an appeal regarding the Certificate denial, Certificate conditional approval, or

inspection determination no later than 15 days after the date the decision being appealed is made. The appeal must be submitted through [E-permits](#) and specify the following:

For Certificate denials or conditional approvals:

- a. Identify Applicant(s), the associated property address and E-Permits project number;
- b. Identify any comments in returned plans that are the subject of the appeal;
- c. Specify all relevant disputed technical, factual, and legal issues that are being raised in the appeal; and
- d. Provide the name, address, and daytime phone number for the person filing the request and who will receive all notices related to the appeal.

For inspection determinations:

- a. The applicable E-Permits project number;
- b. Specify all relevant disputed technical, factual, and legal issues that are being raised in the appeal; and
- c. Provide the name, address, and daytime phone number for the person who files the request and will receive all notices related to the appeal.

Upon receipt of an appeal of a Certificate decision or inspection finding, Harris County Engineering will place the matter on the Agenda of Harris County Commissioners Court for review. The County Engineer will provide the Applicant notice that the matter is on the Agenda by email or mail at the Applicant's address shown on the appeal. The Commissioners Court may either affirm or reverse the Certificate or inspection decision. In the event the Harris County Commissioners Court does not affirm or reverse the Certificate decision within 60 days after the appeal is filed, the Certificate application shall be considered approved. Similarly, in the event the Harris County Commissioners Court does not affirm or reverse the inspection decision within 60 days after the appeal is filed, the inspection determination is waived.

{Note: This section as added by [Order of 8-29-2023](#).}

Sec 37 Violation Of Conditions Of Rules

Any Person having knowledge of a violation of these Rules may file a complaint with Commissioners Court. If the County Engineer files the complaint, the County Attorney will prosecute the complaint.

([Order of 7-28-2020](#), § 36)

Sec 38 Contempt Of Commissioners Court

Violation of these Rules constitutes contempt of Commissioners Court. Commissioners Court may punish contempt by fine or imprisonment in accord with the provisions of [Texas Local Government Code Section 81.023](#), as amended. Any Person authorized by the County Engineer to perform Work within HC or HCFCD ROW does so on the representation to Commissioners Court that such person will comply with these Rules and other County Regulations or District Applicable Criteria. Violations of such representations constitute contempt of Commissioners Court. If Commissioners Court finds the defendant guilty of contempt, it will enter such Orders consistent with general law necessary to enforce and protect its jurisdiction over the matter, and to uphold the integrity of these Rules. Such Orders are enforceable by civil or criminal contempt. Procedures for contempt proceedings before Commissioners

Court will be consistent with procedures in actions before other courts in this State for enforcement of Court Orders, and for the protection of the jurisdiction of Courts by the process of contempt.

([Order of 7-28-2020](#), § 37)

Sec 39 Severability

If any provision, section, subsection, sentence, clause or phrase of these Rules might otherwise be invalid, illegal, or unenforceable in any respect, it should be construed as being limited in scope and apply to only those circumstances to which it can legally apply. To the extent that any provision or part thereof is still found to be invalid, illegal, or unenforceable in any respect it shall not affect any other provision.

{Cross Reference [Chapter 1, Section 11](#) (Severability)}

([Order of 7-28-2020](#), § 38)

Table 1 Bonds

[Type Of Bonds](#)

[Bond Forms](#)

BOND AMOUNT for Work in HC ROW

\$5,000.00 Road Crossing other than storm sewer bores, tunnels, median modifications, turn lanes, roadway open cuts or widenings.

\$8.00 Per Linear Foot, other than irrigation

\$2.00 per foot for irrigation line installation in ROW

\$80,000.00 or 100% of the construction costs whichever is greater – Per Traffic Signal

\$40,000 or 100% of the construction costs whichever is greater – Per median modification, turn lane, road widening, storm sewer bore, and tunnel or roadway open cut

BOND AMOUNT for Work in HCFCD AND HCTRA ROW

CONSTRUCTION COST OF WORK IN HCFCD ROW	MINIMUM BOND AMOUNT REQUIRED
\$25,000.00 or Less	\$25,000.00
More than \$25,000.00	100% of Construction Cost

CONSTRUCTION COST OF WORK UNDER, ACROSS OR OVER TOLL ROADS IN THE HCTRA TOLL ROAD SYSTEM	MINIMUM BOND AMOUNT REQUIRED
\$50,000.00 or Less	\$50,000.00

More than \$55,000.00	100% of Construction Cost
-----------------------	---------------------------

Type Of Bonds

One of the following bonds payable to HC shall accompany such application as described in [Section 10](#): A bond with two good and sufficient personal sureties, a corporate surety bond, or a personal bond, if acceptable to the Commissioners Court of Harris County, Texas, acting in its sole discretion upon proof being furnished to the satisfaction of said Court as to the financial responsibility of such individual or entity desiring to make such crossing and/or crossings, for each crossing of such Facility over a HC or HCFCD ROW or for each one mile or part of one mile such Facility runs parallel with and within the boundaries of such HC or HCFCD ROW.

In the event the construction of one continuous Facility is to be made in, over, across, and along several HC or HCFCD ROW, one such bond covering all construction of such Facility in, under, across, or along the several HC road or HCFCD ROW affected by such continuous Facility construction.

One perpetual bond, executed solely by such individual or entity, if acceptable to the Commissioners Court of Harris County, Texas, acting in its sole discretion, upon proof being furnished to the satisfaction of said Court as to the financial responsibility of such individual or entity; such perpetual bond to cover all Facilities thereafter laid across or along any HC road or HCFCD ROW in Harris County, Texas under the jurisdiction of the Commissioner's Court of Harris County, Texas.

The amount and terms of each of the above bonds shall be determined by the schedule above or by the County Engineer of Harris County, Texas and each of the above bonds shall be conditioned on the Utility or Utilities covered thereby being constructed, maintained and repaired so as to comply with the herein established minimum requirements and conditions for such laying, constructing, maintaining, and repairing of such Utility or Utilities in, under, across and along such HC road or HCFCD ROW.

([Order of 7-28-2020](#))

Bond Forms

All bond forms are to be promulgated by the County Engineer of Harris County, Texas.

([Order of 7-28-2020](#))

Figure 1

[Click here to view PDF](#)

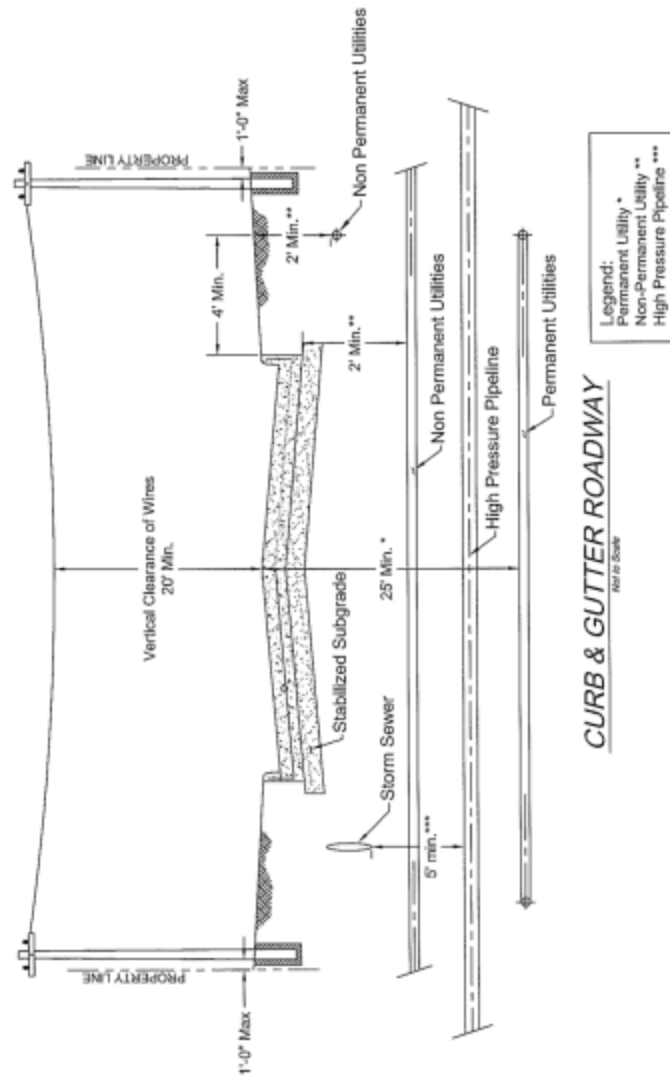


Figure 1

Figure 2

[Click here to view PDF](#)

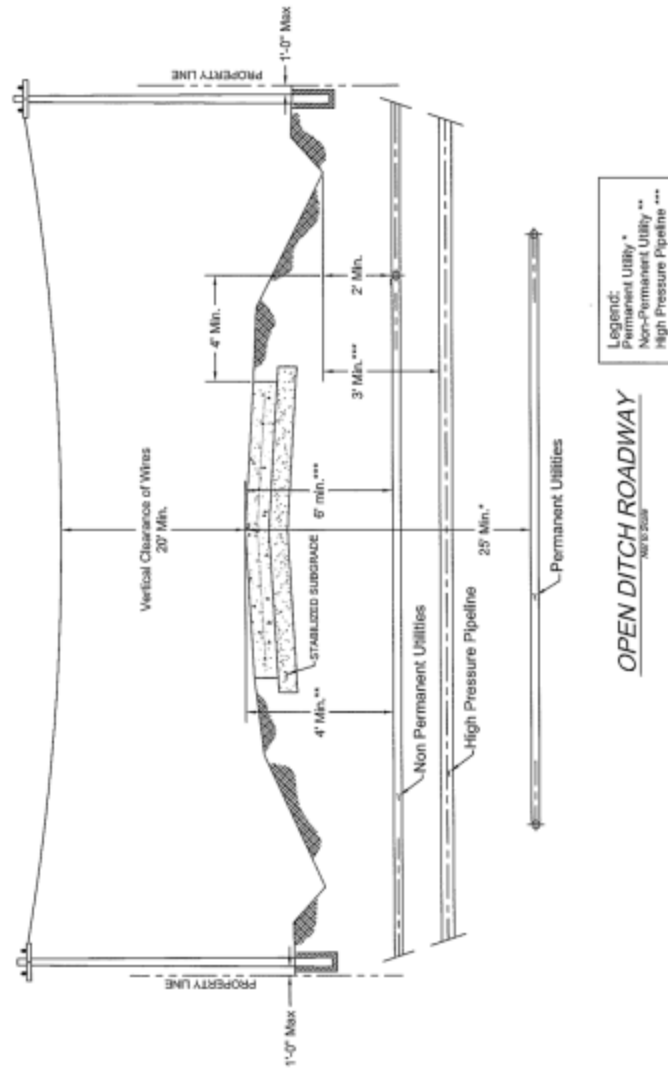


Figure 2



Figure 3

[Click here to view PDF](#)

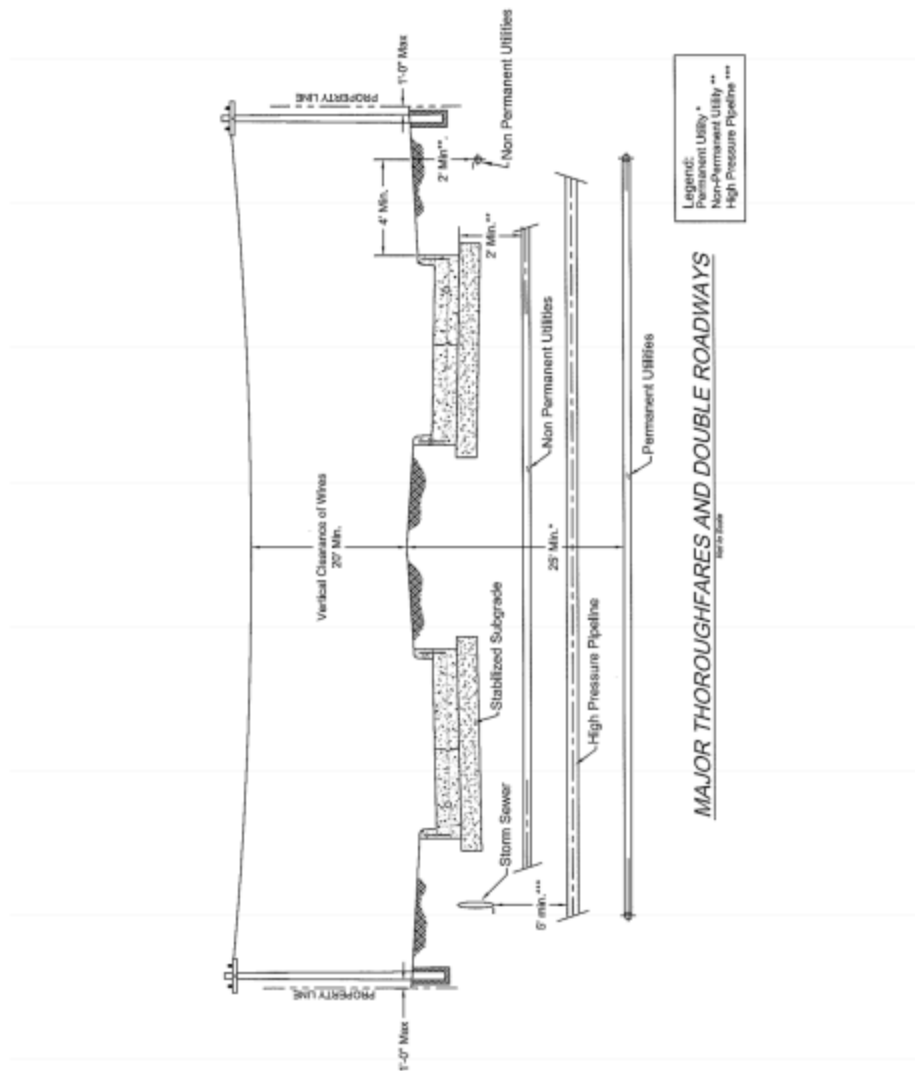


Figure 3

Figure 4
[Click here to view PDF](#)

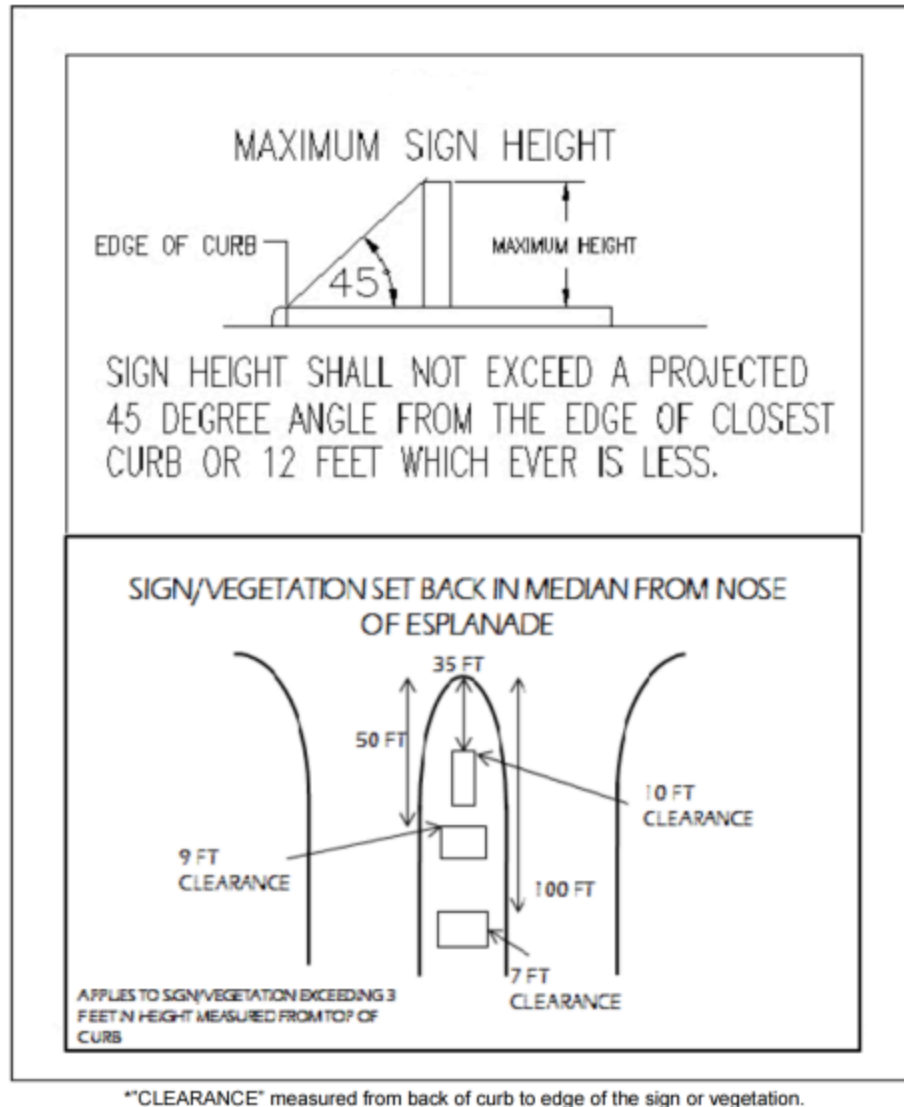


Figure 4

Subchapter 41C - Regulations For The Construction Off Driveways And/Or Culverts On County Easements And Rights-Of-Way

[Sec 1 Authority To Adopt These Regulations](#)

[Sec 2 Definitions In These Driveway Regulations](#)

[Sec 3 General Provisions](#)

[Sec 4 Construction And Inspection](#)

[Sec 5 Enforcement](#)

[Sec 6 Exceptions](#)

[Sec 7 Records](#)

[Sec 8 Effective Date](#)

[Sec 9 Severability](#)

[Sec 10 Fees, Driveways And Culverts](#)

[Wheel Chair Ramp Details](#)

[Driveways On 4 X 12 Monolithic Curbed Type Streets Residential Area](#)

[Sidewalks And Driveways On Curbed Type Streets Residential Area](#)

[Driveway On Curbed Concrete Or Asphalt Streets Commercial Area](#)

ORDER AMENDING REGULATIONS OF HARRIS COUNTY FOR THE CONSTRUCTION OF DRIVEWAYS AND/OR CULVERTS IN COUNTY EASEMENTS AND RIGHTS-OF-WAY AND SETTING PERMIT

On this the 27th day of September, 2005, the Commissioners' Court of Harris County, Texas, sitting as the governing body of Harris County, upon motion of Commissioner Jerry Eversole, seconded by Commissioner Steve Radack, as duly put and carried.

WHEREAS, the Commissioners' Court of Harris County adopted Regulations of Harris County for the Construction of Driveways and/or Culverts on County Easements and Rights of Way on January 1, 1983; and

WHEREAS, said Regulations were amended by Commissioners' Court on October 25, 1983, and on May 10, 1988; and on June 22, 1993; and on January 4, 1994; and on November 28th 1995, and

WHEREAS, the Commissioners desires to further amend said Regulations to include changes needed to clarify various provisions; and

WHEREAS, the Commissioners' Court of Harris County, Texas, is of the opinion and hereby affirmatively finds, determines and declares that the following amended regulations should be adopted.

Therefore, it is ORDERED, ADJUDGED AND DECREED by the Commissioners' Court of Harris County, Texas, that the following regulations be and are hereby adopted effective September 27, 2005, with a November 15, 2005 implementation date.

REGULATIONS OF HARRIS COUNTY, TEXAS, FOR THE CONSTRUCTION OF DRIVEWAYS AND CULVERT IN COUNTY EASEMENTS AND RIGHTS-OF-WAY

Sec 1 Authority To Adopt These Regulations

These regulations are adopted by the Commissioners' Court of Harris County, Texas, pursuant to the authority granted to it by [Section 2](#) of the Harris County Road Law, [Acts 1983, 68th Legislature, Page 4643, Chapter 801](#).

([Order of 9-27-2005](#), § 1)

Sec 2 Definitions In These Driveway Regulations

As used in these Regulations, the following words and phrases have the following meanings:

- A. "County or public easements or rights-of-way" mean any right, title or interest in land acquired, claimed or maintained by Harris County for road and road drainage.
- B. "Person" means any individual, corporation, partnership, limited partnership, joint venture or other entity. {Cross Reference [Chapter 1, Section 2.1](#) (Person)}
- C. "County Engineer" means the County Engineer of Harris County, Texas. {Cross Reference [Chapter 1, Section 2.1](#) (County Engineer)}

- D. "Roadway" means the portion of the improved surface of the County or public easement or right-of-way used for travel by vehicular traffic which is usually constructed of concrete, asphalt, gravel, shell or other material providing a hard surface.
- E. "Driveway" means an improved surface used for vehicular access from the edge of a County roadway to the right-of-way or easement line.
- F. "Culvert" means a hollow structure of concrete which provides waterway openings to conduct water for drainage purposes.
- G. "Sidewalk" means an improved surface used for pedestrian traffic along the County right-of-way or easement.
- H. "Start of Construction" means the commencement of any grading, excavation, removal of concrete curb, or setting of culvert pipe on County or public easements or rights-of-way.

([Order of 9-27-2005](#), § 2)

Sec 3 General Provisions

- A. Construction of driveways, sidewalks, culverts whenever applicable, or the replacement of existing driveways, sidewalks or culverts on County or public easements on rights-of-way without first securing a permit is prohibited.
- B. Applications for permits for the construction of driveways, sidewalks and culverts on County or public easements or rights-of-way shall be made to the County Engineer.
- C. When an application for a driveway with or without culvert or sidewalk is filed, the applicant will provide the County Engineer with the data needed to determine the following:
 - 1. The location of the driveway, sidewalk and/or culvert within the County or public easement and right-of-way.
 - 2. The location of all physical objects such as drainage inlets or catch basins within the portion of the driveway or sidewalk which is within the County or public easement or right-of-way that might conflict with the construction of the driveway. The applicant must provide the location of all man-made objects within the portion of the driveway or sidewalk which is within the County or public easement or right-of-way.
 - 3. That a driveway connecting to a concrete curb and gutter street or road is designed in accordance with Harris County Engineering Department Drawings and any subsequent amendments or revisions thereto as promulgated by the County Engineer.
 - 4. That a driveway constructed over a roadside ditch culvert conforms to at least the geometric requirements of the aforementioned drawings.
 - 5. That the maximum width of a driveway serving a single family dwelling or an agricultural property and connected to a County street or road with roadside ditches shall not exceed 36 feet.
 - 6. That the maximum width of a commercial driveway over a roadside ditch shall not exceed 96 feet.
 - 7. That an island proposed within a commercial driveway on a curb and gutter street has a maximum width of two times the total width of the driveway, including the return radii, divided by eight. No island shall be placed inside the curb line on a concrete curb and gutter street or no closer than six feet to the edge of pavement on a street with roadside ditches. No island shall be allowed within the right-of-way of a residential street.

8. That driveways proposed to be located on a corner lot is not shown to be located within any portion of public street curb radii.
9. Whether a special design is required whenever the driveway may be proposed in a location hazardous to traffic safety.
10. The proposed culvert conforms to Section 3D of these Regulations.
11. That driveways located on the same property shall be separated by a minimum of 20 feet.
12. That sidewalks constructed in the County right-of-way or easements be constructed in accordance with the Harris County Engineering Department drawings and any subsequent amendments or revisions thereto as promulgated by the County Engineer.
13. That any sidewalk constructed on a corner lot shall have a wheel chair ramp constructed in accordance with the latest requirements of the Texas Architectural Barriers Act, Article 9102 Texas Civil Statutes, if said ramp is not already in place. {Revised Civil Statute article 9102, is now codified in [Texas Government Code chapter 469](#). See TEX. GOV'T CODE ANN. §§ 469.001–.208 (adopted by Act of May 20, 2003, 78th Leg., R.S., ch. 1276, § 9.005(a), 2003 Tex. Gen. Laws 4158, 4203–09}.

D. When an application for only a culvert is filed, the applicant will provide the County Engineer with the data needed to determine the following:

1. The location of the culvert by staking the beginning and the end of the proposed culvert on the ground and showing the distance from the nearest property corner or intersecting street or road.
2. Whether the culvert will provide ultimate access to a single family dwelling or whether it will serve another type of land use.
3. The type of culvert structure. All culverts shall be constructed of reinforced concrete. All pre-cast conduits or pipe shall be new, tongue and groove (bell ended pipe shall not be used), reinforced Class III pipe. An exception may be granted for the use of used reinforced concrete pipe for residential use only after an inspection of the pipe by a County Commissioner's Precinct Superintendent and County Engineer determines that the quality of the used pipe is equivalent to new pipe.
4. The length of the proposed culvert based on the following standards:
 - a. Single Family Dwellings:
 - (1) Minimum for walkway: one joint of pipe
 - (2) Minimum for driveway: 16 feet
 - (3) Maximum for driveway: 40 feet
 - b. All Other Driveways:
 - (1) Minimum for driveway: 16 feet
 - (2) Maximum for driveway: 100 feet
 - (3) Inlets shall be spaced 50 feet or in the mid-point of any culvert over 50 feet in length.
 - c. New Street Crossings or Connections to Existing Streets:
 - (1) Length to be determined by the County Engineer.

5. All culverts shall be bedded and backfilled with cement stabilized sand from a point six inches below the culvert to one foot below the subgrade of the proposed driveway. Temporary culverts, culverts used for access to property used for agricultural purposes or for access to single family dwellings are exempt from this requirement.
- E. The County Engineer shall review the application and supporting information and determine the following:
 1. The size of culvert. [The minimum culvert diameter shall be 18 inches.]
 2. Whether the proposed culvert conforms to all other requirements of these regulations.
- F. Permits shall stipulate that construction pursuant to the permit will be commenced within six months and be completed within nine months from the date of the permit and that fees collected for said permits shall not be refundable. Inspection fees may only be refunded upon written request by the permittee and after approval by Commissioners Court. Permit fees are not refundable.
- G. Permits for the installation of driveways, sidewalks or culverts must be obtained from the County Engineer prior to the start of construction. Permits are not required for the following:
 1. The repairs of driveways constructed on concrete curb and gutter public streets prior to May 10, 1988.
 2. The repair, replacement or installation of culverts on roads that are not on the County's Road and Bridge Units and Sections Log.
 3. Repair of sidewalks constructed prior to November 1, 2005.
- H. All permits issued by the County Engineer for the construction of driveways, sidewalks or culverts on a County or public easement or right-of-way shall require conformance with these Regulations including Harris County Engineering Department Drawings and any subsequent amendments or revisions thereto as promulgated by the County Engineer.
- I. The County Engineer shall promulgate forms to be used in the administration of these Regulations.

([Order of 9-27-2005](#), § 3)

Sec 4 Construction And Inspection

- A. Driveways connecting to concrete curb and gutter roadways shall be inspected after the placement of reinforcing steel and prior to the placing of concrete, and again after the concrete placement for conformance with County standards.
- B. Driveways connecting to asphalt roadways without curbs and gutters will be inspected after the placement of materials for conformance with the geometric requirements of these Regulations.
- C. The installation of culverts shall be governed by the following procedures:
 1. Culverts shall not be set until grade stakes are provided by Harris County.
 2. Culverts shall not be backfilled until an inspection is conducted by Harris County to determine that the elevation and grade of the culverts have been correctly set.
 3. Culverts shall also be inspected upon completion of the placement of cement stabilized backfill and prior to commencement of driveway construction.

- D. All driveways requiring special geometric design shall be inspected for conformance with drawings.
- E. The County Engineer may make any additional inspections deemed necessary to administer these Regulations.
- F. Sidewalks will be Inspected after placement of concrete. Inspection will verify nominal thickness of concrete, and compliance with the with the Architectural Barriers Act, Article 9102, Texas Civil Statutes. Items inspected will cover location, slope and obstruction by improperly elevated manholes, water valves, etc. {Revised Civil Statute article 9102, is now codified in [Texas Government Code chapter 469](#). See TEX. GOV'T CODE ANN. §§ 469.001–.208 (adopted by Act of May 20, 2003, 78th Leg., R.S., ch. 1276, § 9.005(a), 2003 Tex. Gen. Laws 4158, 4203–09}.

([Order of 9-27-2005](#), § 4)

Sec 5 Enforcement

The County Engineer shall be charged with the enforcement of these Regulations. If any person violates any provision of these Regulations the County Engineer will attempt to obtain compliance with these Regulations. In the event the County Engineer is unable to obtain compliance within a reasonable time the County Engineer may so report to the Commissioners Court and the following remedies may be pursued:

- (a) If any person engages in the construction or repair of a driveway, sidewalk or culvert crossing a County easement or right-of-way without a permit, the Commissioners Court may direct the County Attorney to file suit to enjoin the violation of these Regulations.
- (b) If any person engages in the construction or repair of a driveway, sidewalk or culvert in any manner except as specified in the permit issued therefor by the County Engineer, the Commissioners Court may direct the County Attorney to file suit to enjoin the violation of these Regulations.
- (c) If any person engages in the construction of a driveway, sidewalk or culvert crossing a County easement or right-of-way without a permit, or if any person engages in the construction or repair of a driveway or culvert in any manner except as specified in the permit issued therefor by the County Engineer, the Commissioners Court may order the landowner to remove or repair the driveway or culvert at the landowner's expense.

[[Tex. Loc. Gov't Code Ann. § 81.023](#), provides that the Commissioners Court may punish contempt by fine not to exceed \$25.00, or by imprisonment not to exceed 24 hours and in case of fine, the party may be held in custody until the fine is paid.]

- (d) Any person securing a permit under these Regulations must certify to Commissioners Court that the terms, provisions and conditions of the permit will be complied with. Violation of this certification constitutes contempt of Commissioners Court.
- (e) If the Commissioners Court finds a person to be guilty of contempt, it may enter such orders consistent with general law as it deems appropriate to punish the person guilty of contempt, and may enter such order and further orders enforceable by civil and criminal contempt, and consistent with its authority under general law, as Commissioners Court deems necessary to enforce and protect its jurisdiction over the matter and to uphold the integrity of these Regulations.
- (f) The procedure for contempt proceedings before Commissioners Court will be consistent with procedures in actions before other courts in this state for enforcement of court orders, and for the protection of the jurisdiction of courts by process of contempt. Provided, however, that the

person shall be given 10 days notice of said contempt proceeding by certified or registered mail, return receipt requested.

([Order of 9-27-2005](#), § 5)

Sec 6 Exceptions

An appeal for exception to these Regulations will be considered on the following basis and only after good and sufficient cause has been demonstrated by the applicant for an exception:

- (a) Upon denial of permit, the applicant may appeal the County Engineer's decision by stating and submitting his reasons in writing to the County Engineer and within 10 days of the denial of said permit.
- (b) The County Engineer shall review the appeal and within 15 days of receipt of the said appeal, shall reduce his findings to writing and submit his findings and recommendation to Commissioners Court. The applicant shall be provided with a copy of the County Engineer's recommendations and may appear before Commissioners Court to support his appeal.

([Order of 9-27-2005](#), § 6)

Sec 7 Records

All applications and file copies of permits issued pursuant to these Regulations shall be maintained by the County Engineer as part of the permanent records of his office.

([Order of 9-27-2005](#), § 7)

Sec 8 Effective Date

These revised Regulations shall become effective upon adoption by Commissioners Court.

([Order of 9-27-2005](#), § 8)

Sec 9 Severability

The provisions of these Regulations are severable. If any word, phrase, clause, sentence, section, provision, or part of these Regulations should be held invalid or unconstitutional, it shall not affect the validity of the remaining provisions, and it is hereby declared to be the intent of the Commissioners Court that these Regulations would have been adopted as to the remaining portions, regardless of the invalidity of any part.

{Cross Reference [Chapter 1, Section 11](#) (Severability)}

([Order of 9-27-2005](#), § 9)

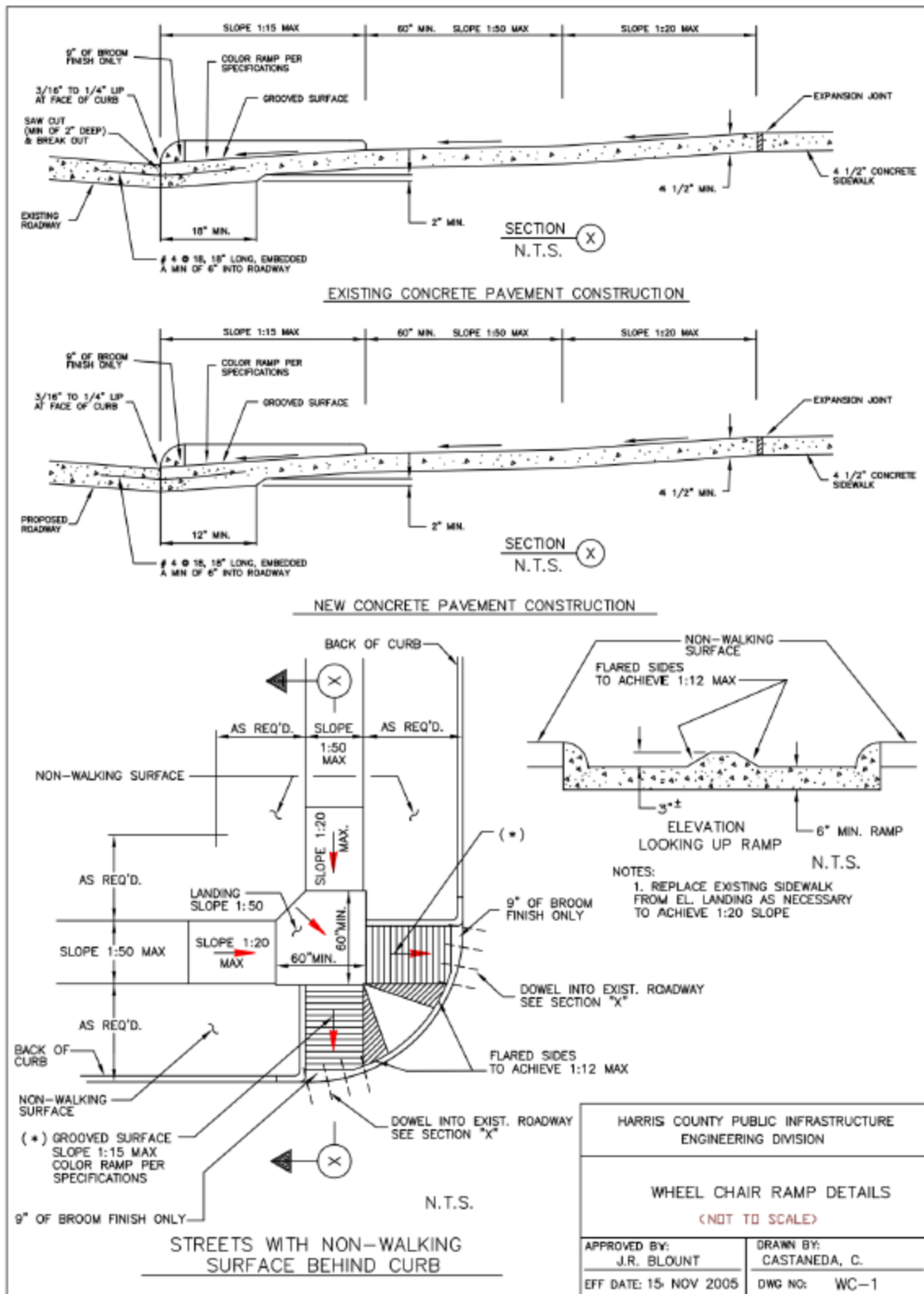
Sec 10 Fees, Driveways And Culverts

The fees for permits and inspections shall be paid in accordance with the fee schedule adopted by Commissioners Court.

([Order of 9-27-2005](#), § 10)

Wheel Chair Ramp Details

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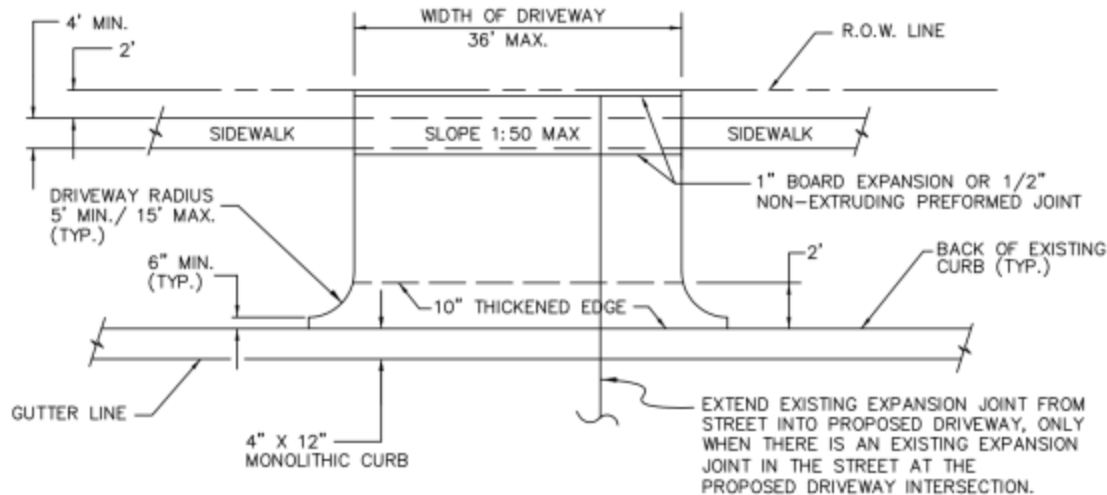
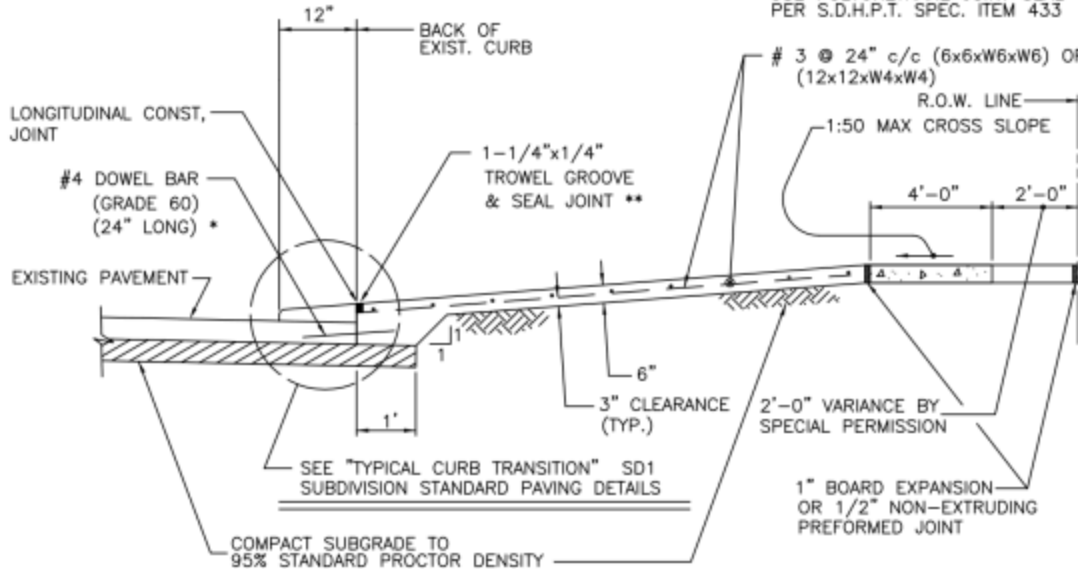


Driveways On 4 X 12 Monolithic Curbed Type Streets Residential Area

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USE FOR ALL PROPOSED DRIVES ON 4" X 12"
MONOLITHIC CURBED TYPE STREETS

*DOWEL BARS AT 24" CENTER TO CENTER EMBEDDED 9" AND EPOXIED
**FOR SEALING TROWEL GROOVE USE POLYURETHANE JOINT SEAL PER S.D.H.P.T. SPEC. ITEM 433



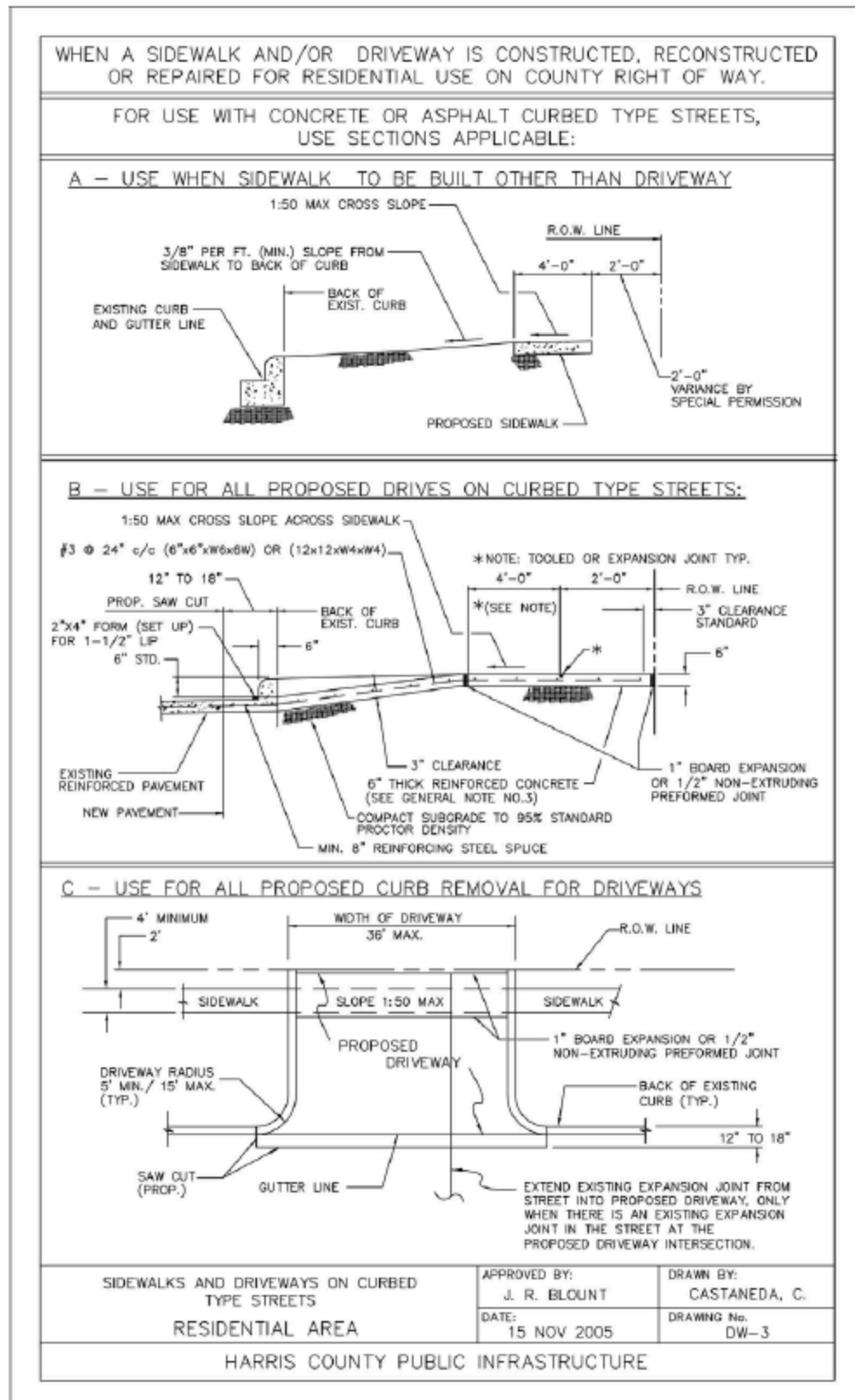
GENERAL NOTES:

1. PROPOSED DRIVEWAY SHALL MATCH EXISTING TOP OF CURB.
2. PROPOSED DRIVEWAY SHALL BE BUILT WITH PORTLAND CEMENT CONCRETE, 4-1/2 SACK CEMENT PER CUBIC YARD, 6 INCHES THICK, FROM EXISTING PAVEMENT TO RIGHT-OF-WAY LINE WITH 10" THICKENED EDGE FOR 2 FEET, (SEE DRAWINGS FOR ADDITIONAL INFORMATION AND DETAILS), AND TO BE REINFORCED WITH #3 DEFORMED REINFORCING BARS, (MINIMUM, ASTM A615 GRADE 40, UNLESS NOTED) SPACED AT 24 INCHES C.C. EACH WAY, WITH 6 INCHES MINIMUM LAP (12"x12"xW4xW4 OR 6"x6"xW6xW6 AS ALTERNATIVE).
3. 6" COMPACT SUBGRADE TO 95% OF STANDARD PROCTOR DENSITY (+/-2% OPT. MOISTURE) FOR PROPOSED DRIVEWAY CONNECTION FROM EXISTING PAVEMENT TO RIGHT-OF-WAY LINE. THE COUNTY ENGINEER RESERVES THE RIGHT TO REQUIRE LABORATORY TESTS TO BE CONDUCTED.
4. IF MORE THAN ONE PROPOSED DRIVEWAY IS BUILT ON THE SAME PROPERTY, SAID DRIVEWAYS SHALL BE SEPARATED BY A MINIMUM DISTANCE OF 20 FEET (ROADWAYS WITH CURBS & SIDEWALKS).
5. DRIVEWAY RADIUS MAY NOT BEGIN WITHIN INTERSECTION RADIUS.
6. THE OUTER DOWEL BARS ARE TO BE LOCATED 12" FROM END OF PROPOSED EDGE OF DRIVEWAY RETURN. EXTEND DOWEL 3" INCHES INTO PROPOSED DRIVEWAY AND BEND REMAINING BAR TO EXTEND TO RADIUS RETURN BOTH SIDES.

DRIVEWAYS ON 4" X 12" MONOLITHIC CURBED TYPE STREETS RESIDENTIAL AREA	APPROVED BY: J.R. BLOUNT	REVIEWED BY: WILLIAMS, J. DRAWN BY: CASTANEDA, C.
	DATE: 15 NOV 2005	DRAWING No. DW-2
HARRIS COUNTY PUBLIC INFRASTRUCTURE		

Sidewalks And Driveways On Curbed Type Streets Residential Area

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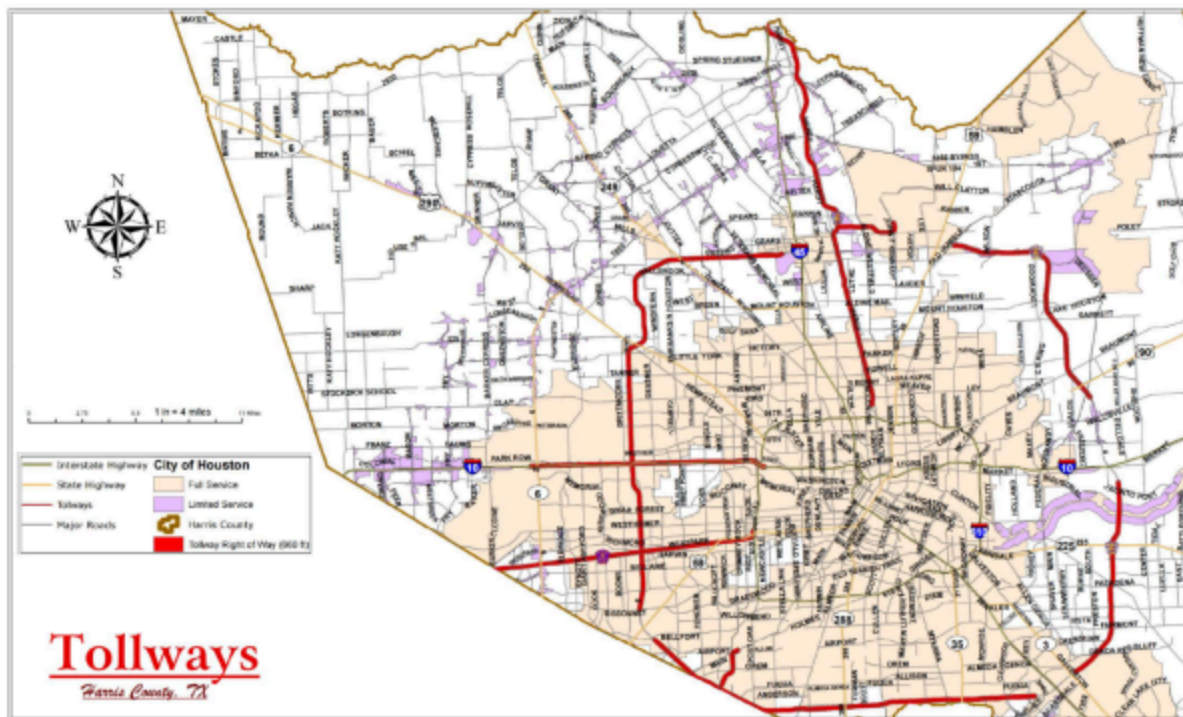
[Sec 4 Administration And Enforcement](#)
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[PART 1 STANDARD SIGN REGULATION](#)

{Editors Note: The Commissioners Court order is labeled Part 1. Standard Sign Regulation. There is no Part 2}

Editor's note—The Order adopted on December 9, 2009 was effective on January 1, 2010.

Regulations Of Harris County For The Placement Of Signs Visible From The Main-Traveled Way Of A Toll Road Within Harris County, Texas

[Click here to view Harris County Toll Road Authority System Map](#)



Sec 1 Scope

- The provisions of these Regulations shall apply to all signs, as defined herein, which are visible from the main-traveled way of a toll road within Harris County and are erected for the purpose of having the message seen from the main-traveled way of a toll road within Harris County.
- These regulations are adopted by the Commissioners Court of Harris County, Texas, acting as the governing body of the Harris County Toll Road Authority of Harris County, pursuant to

[Chapter 395 of the Texas Transportation Code.](#)

(Order of 2-10-1998, pt. 1, § 1; [Order of 12-8-2009](#))

Sec 2 Definitions, Toll Road Sign Regulations

The following definitions shall apply to these Regulations:

Building - means a structure served by utilities and has normal ingress and egress requirements.

Business - means a commercial enterprise, public building or non-profit organization (including but not limited to schools and churches) occupying real property or building(s).

Commissioners Court - means the Commissioners Court of Harris County, acting as the governing body of the Harris County Toll Road Authority of Harris County. {Cross Reference [Chapter 1, Section 2](#) (Commissioners Court)}

County Engineer - means the Harris County Engineer or the Harris County Engineer's designated agents and employees responsible for administrating and enforcing these Regulations as provided in [Section 4](#) of these Regulations. {Cross Reference [Chapter 1, Section 2.1](#) (County Engineer)}

County Toll Road - means any toll road in Harris County which was constructed pursuant to [Chapter 284 of the Texas Transportation Code.](#)

Frontage - means that portion of any tract of land that abuts a public road or street right of way or permanent access easement.

Grade - means the natural level of the ground upon which the sign structure is placed.

Motorist Information Panel - means a rectangular panel placed on a toll road that contains at least one business sign advertising a business available within a certain distance of that interchange as authorized under [Chapter 395 of the Texas Transportation Code.](#)

Off-Premise Sign - means a sign displaying advertising that pertains to a business, person, organization, activity, event, place, service, or product not principally located or primarily manufactured or sold on the premises on which the sign is located.

On-Premise Sign - means a freestanding sign identifying or advertising a business, person or activity, and installed and maintained on the same premises as the business, person, or activity. {Cross Reference [Subchapter 42D, Section 2, Definitions,](#) On Premise Sign}

Person - means an individual, corporation, association, or any other entity. {Cross Reference [Chapter 1, Section 2.1](#) (Person)}

Sign - means a structure, display, light device, figure, painting, drawing, message, plaque, poster, billboard, logo or other thing that is designed, intended, or used to advertise or inform, including but not limited to strings, pennants, flags, twirlers, propellers, flares, balloons, noise creating wind devices, inflatable displays and similar devices of carnival character, including wind devices activated by natural or artificial means. {[Cross Reference Subchapter 42D, I. Definitions, Sign](#)}

Sign Structure - means any structure which supports or is capable of supporting any sign. A sign structure may be a single pole and may or may not be an integral part of a building.

Visible - means when used in connection with visibility of a sign from a County Toll Road, means that any message bearing part of the sign is legible from a County Toll Road. Any sign within 660 feet of

edge of pavement of main-traveled way of a County Toll Road shall be presumed visible from that road and erected for the purpose of having the message seen from the main-traveled way of a toll road within Harris County; however, there is no presumption that signs beyond 660 feet of a County Toll Road are not visible from the road.

(Order of 2-10-1998, pt. 1, § 2; [Order of 12-8-2009](#))

Sec 3 Sign Classifications

Types of Signs

- (a) To enforce the provisions of these Regulations, all signs, whether off-premise or on-premise, shall be classified into one of the following type signs:
- (1) 'Berm Sign' shall mean any sign whose components are permanently affixed, constructed with any combination of masonry, wood, concrete, rock, metal or plastic with the sign structure and/or embellishments beginning at grade, or within six inches of grade and, if illuminated, permanently wired for low intensity lighting.
 - (2) 'Marquee sign' shall mean a projecting sign attached to or hung from a canopy or covered structure projecting from and supported by a frame or pipe support extending beyond a building.
 - (3) 'Projecting sign' shall mean any sign which is affixed to any building wall or structure and extends beyond the building wall or structure more than 12 inches.
 - (4) 'Roof sign' shall mean any sign erected, constructed or maintained above the roof of any building.
 - (5) 'Wall sign' shall mean any sign affixed to or painted upon the wall of any building.
- (b) Any on-premise or off-premise sign of any type may also be included within one or more of the following classifications according to special functions:
- (1) 'Electrical sign' shall mean any sign containing electrical wiring or utilizing electric current, but not including signs illuminated by an exterior light source.
 - (2) 'Portable sign' shall mean any sign designed or constructed to be easily moved from one location to another, including signs mounted upon or designed to be mounted upon a trailer, bench, wheeled carrier, or other non-motorized mobile structure; a portable sign which has its wheels removed shall still be considered a portable sign hereunder. For the purpose of these Regulations, trailer signs and signs on benches are portable signs.
 - (3) 'Spectacular sign' shall mean any sign which has automatically changing advertising, which contains glaring or rotating strobe lights, spot lights, or flashing or blinking lights, or which moves, rotates, or has any moving parts whatsoever. A changing message that does not change more than once every five minutes shall not be considered "automatically changing advertising".
 - (4) 'Temporary sign' shall mean any sign constructed of cloth, canvas, light fabric, cardboard, wallboard, or other light materials. Portable signs, however, shall not be considered temporary signs.

(Order of 2-10-1998, pt. 1, § 3; [Order of 12-8-2009](#))

Sec 4 Administration And Enforcement

(a) Authority

The Harris County Engineer is hereby authorized and directed to enforce and carry out all provisions of these Regulations. The duties of the County Engineer shall include issuing permits as required by these Regulations, insuring that all signs comply with these Regulations, making necessary inspections, initiating appropriate action to correct noncompliance with and investigating complaints of alleged violations of these Regulations.

(b) Powers

The County Engineer shall have the power and authority to administer and enforce these Regulations. Included among such powers are the following specific powers:

- (1) Every sign for which a permit is required shall be subject to the inspection and approval of the County Engineer.
- (2) Upon notice and issuance of a stop order from the County Engineer, work on any sign which violates the provisions of these Regulations shall cease immediately. Notice and the order shall be in writing and shall be given to the permit holder or permit applicant, or to the designated agent of the permit holder or applicant, or to the person doing the work, and shall state the conditions under which work may be resumed. After issuing a stop order, the County Engineer shall initiate enforcement proceedings as necessary to obtain compliance with these Regulations, including but not limited to the revocation of any permit issued for the sign consistent with [Section 8](#) of these Regulations.
- (3) The County Engineer is hereby granted the power and authority to revoke all permits authorized by these Regulations for violations of any provisions of these Regulations pursuant to [Section 8](#) of these Regulations.

(c) Enforcement

Any person violating any provision of these Regulations shall be punished according to [Section 13](#). In addition, upon the written request of the County Engineer, the Harris County Attorney is hereby authorized to take all equitable actions to assure compliance.

(d) Appeals

Any person wishing to appeal a decision of the County Engineer's Office may within 30 days after the decision deliver notice of appeal to the County Engineer's Office. The County Hearing Examiner shall hold a hearing on the decision, giving the appealing party the opportunity to present relevant facts and legal arguments. The County Hearing Examiner shall be a member of Commissioners Court appointed by the Commissioners Court as hearing examiner, and the hearing shall be held in accordance with the [Administrative Procedure Act, Texas Government Code Sections 2001.001--2001.902](#), as amended.

(e) Variances

The Commissioners Court may, in its sole discretion, grant an applicant a variance as to one or more of these regulations, provided the general purpose of this order is maintained, in those instances where compliance with these regulations would create undue hardship on the applicant due to unusual situations which make strict compliance with these regulations unfeasible. The Commissioners Court may consider, but is not limited to, the following criteria:

- (1) Economic hardship of the applicant caused by compliance;
- (2) the effect of compliance or non-compliance on adjacent land;
- (3) the use of the applicant's land and adjacent land; and

- (4) the aesthetic and safety effects of compliance or noncompliance.

Any person desiring to secure a variance must submit a written request to the County Engineer office, citing the specific regulation from which a variance is sought, the specific facts or reasons a variance is needed, and all possible effects of such variance. The Commissioners Court appointed hearing examiner shall conduct the variance process in a public hearing posted in accordance with the [Texas Open Meetings Act](#). The hearing examiner may recommend the granting of the requested variance or alternative variances to the Commissioners Court. The variance may only be granted by a majority of the Commissioners Court present at the meeting at which the variance is presented. Such variance shall be based on specific findings incorporated in the official minutes of the meeting of Commissioners Court at which the variance is granted.

(Order of 2-10-1998, pt. 1, § 4; [Order of 12-8-2009](#))

Sec 5 Sign Permits

(a) Permit Required

No person shall hereafter erect, construct, reconstruct, alter, maintain or use a sign visible from the main-traveled way of a County toll road for the purpose of having the message seen from the main-traveled way of the County toll road without first having secured a written permit from the County Engineer.

(b) Exceptions

No permit shall be required under these Regulations for the following on-premise signs.

- (1) signs painted on glass surfaces or windows or doors less than 40 square feet in size;
- (2) signs erected by the County, State of Texas (including its political subdivisions such as cities and school districts), or the Federal Government and the lessees of such governmental entities;
- (3) railroad safety signs;
- (4) legal notices and house numbers;
- (5) signs not over 40 square feet in area explaining that a building or other structure is under repair or construction or advertising the sale, rental, or future development of the premises; provided said signs comply with all other provisions of these regulations related to height and placement;
- (6) temporary signs, provided the number of such signs on any premise does not exceed one per frontage road, and provided such signs are displayed on consecutive days for a maximum of seven days in any 30 day period, and the size of the sign shall not exceed 30 square feet;
- (7) signs required by Federal, State, or local laws;
- (8) signs erected solely for or relating to a public election for a period commencing 60 days prior to and for 10 days following such public election, provided that such unpermitted sign shall be located on private property only, shall be constructed of lightweight material, and shall not exceed 50 square feet in size;
- (9) on-premise signs setting forth the location of or directions to parking or buildings located on the premises, or regulating the flow of on-premise traffic provided such signs shall not

exceed 10 square feet in size. Such directional signs may be lighted, consistent with the requirements of any applicable building codes;

- (10) signs which form an integral part of a canopy or marquee entrance and state only the street number, provided that the number of such signs shall not exceed the number of entrances for such premises and the size of such signs shall not exceed 10 square feet; or
- (11) signs carrying only non-commercial or non-profit messages, provided such signs conform to the requirements in Sections [10](#), [11](#), and [12](#) of these Regulations;
- (12) "motorist information panel" signs authorized by order of Commissioners Court pursuant to Subchapter B of [Chapter 395 of the Texas Transportation Code](#).

(c) Prohibited Signs

No permit may be granted for the following:

- (1) signs which do not conform to these Regulations;
- (2) off-premise signs including billboards, leased signs or other advertising signs, except those authorized by an operating permit as provided in this Section;
- (3) roof signs;
- (4) projecting signs, except marquee signs, which conform to Section 10;
- (5) signs employing a stereopticon or motion picture machine;
- (6) signs containing lights which are not effectively shielded to prevent beams or rays of light from being directed at any portion of the main-traveled way of a County Toll Road;
- (7) spectacular signs, except otherwise conforming signs which use moving or intermittent lights to give time, date, temperature, weather, or stock market reports; and
- (8) The erection and maintenance of strings, pennants, flags, twirlers, propellers, flares, balloons, noise creating wind devices, inflatable displays and similar devices of carnival character, including wind devices activated by natural or artificial means, are prohibited, except:
 - a. National, State, and local governmental flags as well as flags of other political subdivisions, provided such flags are properly displayed from either freestanding or wall-mounted flagpoles.
 - b. Corporate and institutional flags properly displayed from permanently located freestanding or wall mounted flagpoles, provided such flags are limited in number to one per frontage road, with a maximum of two per premises.
 - c. Holiday decorations in season, provided such decorations are removed within 20 calendar days of the passing holiday to which they pertain.
 - d. Streamers, pennants, and displays calling attention to the grand opening of a completely new business shall be permitted, provided no premises shall be permitted to utilize such devices for more than 60 consecutive calendar days.
 - e. Displays used strictly for non-commercial or non-profit purposes, provided such displays conform to applicable building, fire, and safety codes, and contain no flashing, blinking, or searching lights or mechanically moving parts.
- (9) No portable sign as defined in [Section 3\(b\)\(2\)](#) of these regulations may be placed along any Harris County Toll Road.

- (10) Signs obstructing the view of motorists entering or exiting roads, railroads, on-ramps, off-ramps or toll roads, or interfering with the driver's view of approaching, merging or intersecting traffic.
- (11) Any non-governmental sign resembling a public safety warning or traffic sign.
- (12) Signs constructed or maintained upon trees and utility poles or painted or drawn upon natural rock formations or other natural features.
- (13) Signs that obscure or physically interfere with an official traffic control sign, signal or device.
- (14) Signs within any road or toll road right-of-way, with the exception of signs listed in these regulations.

(d) Relocation of Certain On-Premise Signs

Notwithstanding the provisions of this Section, any on-premise sign which has a valid operating permit and which exceeds the height and size limitations contained in these Regulations may be relocated on the same premises, if:

- (1) the sign is removed from its present location because Harris County acquired the property upon which the sign is located through eminent domain or purchase; and
- (2) the sign is relocated at the height and size indicated on the sign's current permit and without any substantial alterations in the construction materials of the sign; and
- (3) the sign otherwise conforms with all other provisions of these Regulations at the time of relocation.

However, nothing in this section shall restrict the right of the County Engineer to remove the sign pursuant to [Section 8](#) of these Regulations.

(e) Existing Signs; Operating Permit

- (1) Any existing sign subject to these Regulations which is authorized through a permit issued under a previous version of the Regulations of Harris County for the Placement of Signs Visible from the Main-Traveled Way of a Toll Road Within Harris County, Texas, including an operating permit, are not in violation of these Regulations so long as the sign remains in compliance with the previously secured permit or these amended Regulations. A new permit may be secured for a sign upon submission of an application showing that the sign is in compliance with these Regulations, as amended.
- (2) When any sign, or a substantial part thereof, is blown down, taken down, destroyed, or removed for any purpose other than maintenance or the changing of letters, symbols or other matter on the sign, it shall not be re-erected or reconstructed except in full compliance with these Regulations. Any sign blown down or damaged must be fully repaired in compliance with these regulations or completely removed within 30 days.
- (3) Voluntary can or cabinet change of an existing sign will require full compliance with these Regulations.

(f) Subterfuge

Any permit secured before or after the effective date of these Regulations which, has been secured through subterfuge and is not in full compliance with the provisions of these Regulations, shall be void. Determination of whether a permit is void shall conform with the revocation provisions of [Section 8](#) regarding notice and hearing.

(g) Identification of Sign

Every sign for which a permit is required shall be plainly marked with the name of the owner, lessee or the sign company erecting and maintaining the sign and shall have affixed a numbered sticker from the County Engineer in a location so as to be conspicuous and easily identifiable from an adjacent public street.

(h) Construction Required

A permit for construction of a sign shall terminate and have no further effect if the sign is not completed within 180 days from the date the permit was issued.

(Order of 2-10-1998, pt. 1, § 5; [Order of 12-8-2009](#))

Sec 6 Permit Application

(a) Application Procedure

The application for a permit shall be submitted in such form as the County Engineer may prescribe and shall be accompanied by drawings and descriptive data to verify compliance with these Regulations. Every application shall be executed and verified by the owner of the premises upon which the sign is to be or has been constructed, or the authorized lessee of such premises. If the sign's plans and specifications conform to all requirements of these Regulations the County Engineer shall issue the permit. A permit issued under these Regulations does not authorize construction of a sign in violation of any other land use restriction, ordinance, regulation or statute.

(b) Address and Agent for Service of Process

Any person applying for a permit under the terms of these Regulations shall at all times maintain an office or an agent within Harris County. The current address of the office or agent shall be filed with the County Engineer or the City of Houston.

(Order of 2-10-1998, pt. 1, § 6; [Order of 12-8-2009](#))

Sec 7 Sign Maintenance

All signs shall be kept in good repair and, unless of galvanized or non-corroding metal or treated with appropriate wood preservative, shall be thoroughly painted as often as good maintenance necessitates. All braces, bolts, clips, supporting frame and fastenings shall be free from deterioration, termite infestation, rot or loosening. If any sign is not appropriately maintained, the County Engineer shall give written notice to the permit holder or the authorized agent to maintain or to remove the sign within 30 days from the date of the notice.

(Order of 2-10-1998, pt. 1, § 7; [Order of 12-8-2009](#))

Sec 8 Sign Removal And Relocation; Permit Revocation

(a) Unlawful Signs

If any sign is installed, erected, constructed or maintained in violation of any provisions of these Regulations, the County Engineer may initiate enforcement proceedings against the property owner or other person responsible for the sign as authorized in these Regulations, including but not limited to seeking criminal charges, or initiating revocation proceedings, or requesting that the County Attorney file suit for injunctive relief from the violation. Removal of an unlawful sign,

installed, erected, or constructed in violation of a permit or these Regulations shall not be subject to the compensation requirements of [Chapter 395](#) {of the Transportation Code}.

(b) Removal of Existing Signs

Any sign existing at the date of passage of these Regulations which does not conform to its requirements, if such signs were legally and properly permitted or legally and properly exempt from having a permit prior to passage of these Regulations, may be removed by the County Engineer at any time, provided compensation is paid as provided in [Section 395.005 of the Texas Transportation Code](#), and in accordance with other applicable laws including but not limited to [Chapter 21 of the Texas Property Code](#).

(c) Permit Revocation

The County Engineer may revoke any permit authorized by these Regulations, if the permitted sign is maintained, or constructed, in violation of these Regulations. If a permit is revoked, the owner, lessee, permittee or person responsible for the sign must remove the sign.

(Order of 2-10-1998, pt. 1, § 8; [Order of 12-8-2009](#))

Sec 9 - Removal And Revocation Procedure

The County Engineer shall give all written notices to alter or remove a sign by certified mail or written notice served upon the property owner, lessee, permittee, or other person responsible for the sign. If the sign is not conforming within 10 days, the County Engineer shall give notice to the owner, lessee, permittee, or person responsible for the sign of a hearing to revoke the permit. The owner, lessee, permittee, or person responsible for the sign shall be given the opportunity to present relevant facts and legal arguments at the hearing. The hearing shall be conducted by a member of the Commissioners Court, appointed by the Commissioners Court as hearing examiner.

(Order of 2-10-1998, pt. 1, § 9; [Order of 12-8-2009](#))

Sec 10 Construction Requirements

All electrical signs shall be limited to not more than 10 bulbs of 100 watts or less, shall be limited to lighting circuits of one 120 volts, shall contain a sunshade screen dimmer, and shall not use reflectorized lights as part of the face of the sign. For the purpose of this Section, "reflectorized lights" shall mean any lamp constructed with reflector-type materials so as to focus, intensify, flood, or spot such lamp in a certain direction, including, but not limited to, lamps designated by the manufacturers as flood, spot, reflector or flood, reflector spot, reflector light, or clear reflector.

(Order of 2-10-1998, pt. 1, § 10; [Order of 12-8-2009](#))

Sec 11 Height, Size, And Quantity Limitations

(a) No berm sign shall exceed 12 feet in height above grade.

(b) Signs shall be no larger than prescribed in Table "A" and "B".

TABLE "A"

<u>WALL SIGNS</u>	
<u>Distance From Main-traveled way of County Toll Road (in Feet)</u>	<u>Maximum Square Footage*</u>
<u><100</u>	<u>75</u>

<u>100</u>	<u>100</u>
<u>150</u>	<u>200</u>
<u>200</u>	<u>300</u>
<u>250</u>	<u>400</u>
<u>300</u>	<u>500</u>
<u>350</u>	<u>600</u>
<u>400</u>	<u>700</u>
<u>450</u>	<u>800</u>
<u>500</u>	<u>900</u>
<u>500+</u>	<u>1000</u>
* Intermediate distances shall be rounded down for the maximum square footage of signs.	

TABLE "B"

<u>BERM SIGNS</u>		
<u>Type of Building</u>	<u>Distance From Main-traveled way of County Toll Road (in Feet)</u>	<u>Maximum Square Footage</u>
<u>Single Business</u>	<u>0 - 250</u>	<u>75</u>
	<u>250+</u>	<u>100</u>
<u>Multi-Tenant 2-3 businesses*</u>	<u>infinite</u>	<u>200</u>
<u>Multi-Tenant More than 3 businesses*</u>	<u>infinite</u>	<u>300</u>
* Individual business sign area shall not exceed 100 square feet.		

(c) Method of Determining the Area of a Sign

In determining the area of any sign, the dimensions of the rectangle enclosing the signboard, excluding the supporting structure, shall be used. If the sign includes cutouts or facings extending beyond the dimensions of the rectangular signboard, the measurement of sign area shall include the actual area of the cutout or extended facings. For double faced, back-to-back, or V-type signs, each face shall be considered a separate sign in computing the face area.

(d) Quantity

Each business may erect one berm sign on each frontage road. Each business with more than 1,000 feet of frontage along the Toll road is allowed one additional berm sign per 1,000 feet of frontage; and must meet the size requirement in Table "B", provided the signs are separated a minimum of 500 feet apart. The total number of berm signs shall not exceed five in number per business. In addition, each business may erect one wall sign or one marquee sign for each traveled direction visible from the Toll Road, not to exceed two per business. If the site contains multiple businesses, the allowable square footage of said signs may be combined into one sign provided that the one sign shall be no larger than twice the smallest allowable single wall sign

listed in Table "A" for each traveled direction visible from the Toll Road, not to exceed two per business.

(Order of 2-10-1998, pt. 1, § 11; [Order of 12-8-2009](#))

Sec 12 Restrictions On Certain Signs

(a) Berm Signs

- (1) Lighting reflectors on ground signs may project beyond the face of the sign.
- (2) Every ground sign shall provide rigid construction to withstand wind action in all directions.

(b) Wall Signs

The surface face of all sign bulletins must be of sheet metal, wood or plastic, but the ornamental molding surrounding the face may be of wood construction.

(c) Marquee Signs

Marquee signs may be attached to or hung from a marquee. The lowest point of a sign hung from a marquee shall be at least eight feet above the sidewalk or ground level, and further, such signs shall not extend or project beyond the corners of the marquee. Marquee signs may be attached to the sides and front of a marquee, and a sign may extend the entire length and width of said marquee, provided no sign shall extend more than six feet above nor one foot below such marquee, nor have a vertical dimension greater than eight feet.

(d) Signs of V-Type or Back-to-Back Construction

- (1) The angle between the faces of V-type signs shall be no greater than 45 degrees measured back-to-back and the maximum distance at the nearest point between the two backs, as measured at the apex, shall not exceed one and one-half feet.
- (2) Back-to-back signs must be on common supports and the nearest point between the two backs shall not exceed one foot plus the diameter of the intervening upright or support.

(Order of 2-10-1998, pt. 1, § 12; [Order of 12-8-2009](#))

Sec 13 Definition Of Offense; Penalties

A person commits an offense under these Regulations by knowingly placing, erecting or maintaining, or causing the placement, erection or maintenance of any sign that violates the provisions of these Regulations. Each day a violation occurs shall constitute a separate offense. Such an offense is a Class C misdemeanor and may be prosecuted as such pursuant to State law.

(Order of 2-10-1998, pt. 1, § 13; [Order of 12-8-2009](#))

Sec 14 Severability

If any provision of these Regulations or their applicability to any person or circumstance is held to be invalid for any reason, the invalidity does not affect any other provision or applicability of these Regulations which can be given effect without the invalid provision or application, and to this end the provisions of these Regulations are declared to be severable.

{Cross Reference [Chapter 1, Section 11](#) (Severability)}

(Order of 2-10-1998, pt. 1, § 14; [Order of 12-8-2009](#))

State law reference: Tex. Transp. Code Ann. Ch. 395.

Adopted February 10, 1988 amended December 8, 2009.

PART 1 STANDARD SIGN REGULATION

Section 3.1 Vehicles

1. Marked police vehicles, fire department vehicles, and ambulances are permitted free passage.
2. Authorized emergency vehicles identified in Tex. Transp. Code Ann. § 541.201 (as amended from time to time by the Texas Legislature) are permitted free passage.
3. Vehicles designated by the Department of Public Safety as emergency vehicles during disasters declared by the governor of Texas are permitted free passage on the Toll Roads (Tex. Transp. Code Ann. § 546.006).
4. Individual military vehicles and convoys, of this state, another state, or the United States, including unmarked military vehicles operated by military personnel conducting an emergency preparedness, response, or recovery operation or participating in a training exercise for an emergency preparedness, response, or recovery operation, are permitted free passage to the greatest extent practicable, considering the technological and personnel limitations of operating the toll project (Tex. Transp. Code Ann. § 362.901). Vehicles which are clearly identifiable as military vehicles may use the electronic tolling lanes with an electronic toll transponder. Non-Tagged Vehicles not clearly identifiable as military vehicles will, upon receipt of an invoice, return the invoice along with a Toll Declaration Form.
5. Vehicles that are part of a funeral procession are permitted free passage on the toll road system under these conditions:
 - a. HCTRA's Executive Director determines that it is in the interest of public safety that the procession be routed onto the toll road system;
 - b. HCTRA is notified of the procession at least 24 hours in advance;
 - c. the procession is escorted by commissioned peace officers; and
 - d. The procession enters and exits the toll road system outside of these hours: Monday through Friday - 6:00 a.m. to 9:00 a.m. and 4:00 p.m. to 7:00 p.m.
6. Processions and motorcades for heads-of-state and dignitaries are permitted free passage if the procession or motorcade is escorted by the United States Secret Service, Texas Department of Public Safety, or other law enforcement agency charged with the responsibility for the safety and security of the head-of-state/dignitary.
7. Harris County owned/leased vehicles are permitted free passage on the toll road system while used in the performance of County business. With the exception of authorized emergency vehicles covered in Section 3.1.2., a Harris County employee who is assigned a County vehicle and authorized to take the vehicle home will be required to reimburse HCTRA for tolls incurred when not doing County business. The reimbursement to HCTRA should include all commuting and any de minimis personal usage throughout the day.
8. Metropolitan Transit Authority of Harris County, Houston, Texas ("METRO") public transit vehicles actually engaged in service are permitted free passage on the toll road system. Qualifying vehicles under this section must be equipped with a HCTRA EZ-Tag on an active EZ-Tag account maintained by METRO or one of its operating contractors. EZ-Tags for qualifying

vehicles must be approved and authorized by a METRO department head. Non-revenue vehicles, vehicles not in service and vanpool/carpool vehicles are not included.

9. Vehicles with qualifying Texas license plates for Disabled Veterans, Purple Heart recipients, Medal of Honor recipients and Legion of Valor recipients are permitted free passage on the toll road system if the vehicle has an electronic toll tag linked to the qualifying license plate and the vehicles are registered with HCTRA. While a qualified license plate is not required to be linked to an electronic toll tag, it is highly recommended for greater access and convenience.

Section 3.2 Individuals

The following individuals are permitted free passage in the specified situations described below:

1. Current active federal and state military members are permitted free passage on the toll road system. If the military member's vehicle is considered a Non-Tagged Vehicle, upon receipt of an invoice, the military member shall return the invoice along with a Toll Declaration Form. While an active federal or state military member is not required to link a vehicle to an electronic toll tag, it is highly recommended for greater access and convenience.
2. HCTRA employees who must incur a toll to access or depart their duty station will be permitted free passage for that purpose. These duty stations are the, Hardy South Toll Plaza, Sam Houston North Toll Plaza, and Sam Houston South Toll Plaza. These employees may obtain a reimbursement for the incurred toll through the Harris County reimbursement process detailed in the Harris County Auditor's Office Accounting Procedure 1.1-2, Mileage Reimbursement.
3. HCTRA employees assigned to the Sam Houston Toll Bridge or Sam Houston East Plaza, and whose most practical and reasonable route to work includes crossing the Toll Bridge may obtain a reimbursement for the incurred toll through the Harris County reimbursement process detailed in the Harris County Auditor's Office Accounting Procedure 1.1-2, Mileage Reimbursement.
4. HCTRA employees who, during their work day, must use the Toll Roads on HCTRA-related business in their private vehicles may obtain a reimbursement for the incurred toll through the Harris County reimbursement process detailed in the Harris County Auditor's Office Accounting Procedure 1.1-2, Mileage Reimbursement.
5. All Harris County employees may use the Harris County reimbursement process, detailed in the Harris County Auditor's Office Accounting Procedure 1.1-2, Mileage Reimbursement, to obtain reimbursement for tolls incurred in carrying out County business.

Section 3.3 Circumstances

It is the intent of this policy to authorize personnel to react quickly to emergencies and events that endanger public safety and/or jeopardize human life while staying within the guidelines provided by applicable bond indentures. Where sufficient notice of an impending catastrophic event allows a reasonable opportunity for Commissioners Court to convene and act, authority to permit free passage on the Toll Roads must be obtained from Commissioners Court. When the emergency or event is unexpected or unforeseen, this policy strives to delegate authority to persons in the best position to exercise informed judgment in a manner that is timely and appropriate to the situation that exists.

The County Judge is authorized to permit free passage on part or all of the Toll Roads when a large-scale emergency or calamity (natural or man-made) threatens public safety and necessitates the immediate evacuation or relocation of large numbers of people that may obstruct or impede rapid movement on the Toll Roads.

In the event of a localized emergency or condition (such as refinery explosions, gas leaks, hazardous material spills, flooding, traffic accidents, lane closures, etc.) that substantially threatens public safety

and mobility, an on-site Incident Management certified peace officer may permit limited free passage for a period of no more than one hour. Approval of the County Judge, or the Executive Director of HCTRA must be obtained to extend free passage beyond the initial one-hour period. HCTRA will notify TranStar of localized emergencies and provide the coordination the circumstances require.

Lane and road closures required for construction and maintenance of the Toll Roads should be planned and coordinated so as to have the least impact on traffic flow. Where such closures are expected to substantially and adversely affect traffic flow and/or threaten public safety, free passage may be permitted by the Executive Director of HCTRA, or their designee.

When opening a new road project or segment, HCTRA's Executive Director may designate a time period where free passage may be permitted to allow for testing of the infrastructure supporting the toll collection process. If the test period needs to exceed 45 days, HCTRA's Executive Director should obtain authorization from Commissioners Court to extend the test period.

(Order of 4-22-2008, § 3; Order of 9-29-2009; Order of 6-8-2021)

Subchapter 41J - Traffic Fatality Markers

Harris County Commissioners Court encourages the use of markers that would designate the location of certain traffic accidents in which fatalities occurred.

In accordance with [Act of May 26, 1985, 69th Leg., R.S., ch. 572, 1985 Tex. Gen. Laws 2191](#), which was adopted by the 69th Texas Legislature and signed by the Governor with an effective date of August 26, 1985, the Commissioners Court hereby adopts the following guidelines for fatality markers:

1. Request for placement of a fatality marker must be submitted in writing to the Commissioner of the precinct in which the fatality occurred and contain the following information:
 - a. name of victim;
 - b. location of accident;
 - c. date of accident;
 - d. name, address, phone number and relationship of requester to the fatality victim.
2. For a deceased person to be considered for a fatality marker, the following must be considered:
 - a. The deceased must have been killed by a motor vehicle being operated by a party under the influence of alcohol.
 - b. The deceased was not the operator or a passenger in the vehicle being operated by the party under the influence of alcohol.
3. The Commissioner of the precinct in which the fatality occurred will research and investigate the request and determine if it meets the Harris County criteria.
4. The commissioner of the precinct in which the fatality occurred will submit the request to Commissioners Court at its regular meeting and the Commissioners Court will decide whether or not a marker should be placed in the county road right-of-way and the location for that marker.
5. If the fatality occurred on a roadway of another governmental unit, the commissioner in whose precinct the fatality occurred will ask for written permission of that governmental unit to install a county marker at a site to be proposed by that commissioner.
6. Each commissioner is encouraged to use a standard marker of uniform size and shape made of redwood, cedar or metal.

7. Each marker may have a name plate containing the name of the person(s) who died, his or her date of birth, and the date of death. The name plate will not be larger than 3 1/4" x 6" and be furnished by the requester.
8. The Commissioner's Court shall locate such marker so that pedestrian and vehicular traffic will not be impeded nor endangered, and so that maintenance of the right-of-way will not be impaired.
9. Each commissioner will provide for the purchase and installation of markers in his precinct with funds from his precinct budget within 30 days after the above requirements have been met.
10. The maintenance of each marker will be the responsibility of the requester for the marker.
11. In the event that alcohol contributed to the accident, a fatality marker will be placed at the requested location if the victim was struck and killed by a drunk driver. No fatality marker will be placed if the individual was a passenger with an intoxicated driver or if the victim was intoxicated.

The foregoing Policy For Traffic Fatality Markers shall supersede the Policy For Traffic Fatality Markers adopted by Commissioners Court on July 14, 1987.

([Order of 12-10-1991](#))

State law reference: [Harris County Road Law Section 1-B.](#)

Adopted December 10, 1991.